# The Failures of Moral Philosophy:

# An Analysis of Ethics in Nazi Germany

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## Abstract

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Arguments of morality are embedded within nearly every aspect of society. Despite the millennia of discussion between philosophers about the nature of morality, no single philosophy has prevailed. This thesis will argue that the moral violations that occurred in Nazi Germany show how Kantian ethics, utilitarianism, and virtue ethics alike all fail in their goal of being a universally applicable understanding of the nature of morality. Because of these failures, an alternative approach to ethics ought to be more seriously considered within the academia of morality. The suggested alternative approach is that of phenomenology, which considers the subjective experience of being in relation to an "Other" and the ethical responsibilities that follow.

Chapter One explains the philosophical background knowledge crucial to understanding the overarching argument. Additionally, Chapter One outlines the goal of the thesis and the steps taken in each subsequent chapter to achieve it. The history of Nazi Germany, starting with the German Wars of Unification up until the Holocaust, is provided in Chapter Two. This chapter establishes that the actions of the Nazi regime throughout their time in power were in fact moral violations.

Chapters Three, Four, and Five show how each of the "big three" analytic moral philosophies were both utilized and perverted by the Nazis. These three chapters each establish how the actions of the Nazi regime provide sufficient ground for the claim that an alternative approach to ethics is necessary to prevent future moral violations. Chapter Three starts with an analysis of Immanuel Kant's moral philosophy, especially his understanding of the "categorical imperative," rationality, duty, and religion. Having described the tenets of Kantian morality, the chapter explains how the Nazis both adopted and perverted the philosophy in their actions.

Chapter Four describes the hedonistic calculus that guides the arguments of utilitarianism promoted by philosopher Jeremy Bentham. The chapter then shows how the inherent problems of this calculative approach to morality, such as the violation of minority rights, unfair distributions of pleasures and pains, and lack of personal integrity, were demonstrated by the Third Reich.

Finally, Chapter Five concludes with an explanation of the virtue ethics created by Aristotle and an application of its approach to the Nazi regime. Here, it is established that virtue ethics failed because of the lack of foundational knowledge crucial for moral guidance in future generations. Virtue ethics still maintains value insofar as phenomenologists can utilize the Aristotelian framework and build upon it.

Chapter Six explains the phenomenology of Emmanuel Levinas and his concepts of ethical responsibility towards the "Other" discovered in face-to-face interactions. The chapter shows how Nazism exists in opposition to the phenomenological approach of ethics as the Nazis desperately tried to avoid encountering the non-Aryan Other and totalize them within their worldview.

Chapter Seven concludes the thesis by recapping the failures of the "big three" analytic philosophies and why phenomenology exists as a valid alternative. This final chapter considers how phenomenology requires a better integration within the structures of society to be taken more seriously within discussions of morality. Until institutional knowledge of phenomenology is cemented, society continues to risk avoidable moral violations.

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# Chapter One
## Introduction

"A whole morality is at stake, the morality that concerns the search for the truth and the relation to the other."[1]

*-Michel Foucault*

Morality is everywhere. No matter how an individual engages with the world around them, their actions are almost certainly influenced by the moral dispositions they hold. Yet, despite the ubiquity of morality, people struggle to come to a common understanding of what the nature of morality actually is. It is difficult to create a moral philosophy that can act as a truly universal understanding of morality. Over time, three main philosophies have come to be considered the most well-revered theories in discussions of ethics in modern times: Kantian ethics, utilitarianism, and virtue ethics. Each of these theories have been widely adopted to try and promote moral development in society and to prevent moral violations from occurring. However, despite the adoption of these theories and their supposed work towards preventing moral violations, we have historically seen graphic moral violations take place anyways. This begs the question: How can moral violations take place even when these theories are present in the societies where they occur? In order to take on the task of answering this question, I utilize Nazi Germany as a case study to show how moral philosophies were weaponized, in contradiction with the aims of morality, to actually promote moral violations against various victims. Before delving into the nuances of the Nazi Germany example, foundational knowledge of moral philosophy must be established.

[1] Michel Foucault, "Polemics, Politics, Problematizations: An Interview with Michel Foucault," by Paul Rabinow, in *Ethics: Subjectivity and Truth*, 111.

In the academia of moral philosophy, there are two established traditions of methodology: the analytic and the continental. Both traditions have spread across the world, although analytic philosophy has primarily dominated English-speaking nations while, as the name suggests, continental philosophy is deeply entrenched in the European continent.[2] However, despite their separate origins each tradition cannot be exclusively defined across a specific geographical line.[3] Unfortunately, the philosophers in each tradition tend to act tribally where they exclusively create work in response to others who work in the same methodological framework as their own.[4] Rarely do philosophers attempt to cross the analytic-continental divide and establish a reconciliation of the two; doing work in one tradition alone is hard enough. This disjointedness often leads to unintended consequences of the analytic-continental divide growing stronger, with each stream of philosophical thought growing further apart.[5] Differences in the two approaches have only become more solidified over time, leading to further tensions and misunderstandings between scholars in their respective tribes.

The analytic tradition is often described by its members as the superior approach to ethics for its use of logic and rational argumentation, which they claim to be lacking in the continental tradition. It aims for realism, empiricism, and scientific practices, where analytic philosophers hold, "the desire for clarity, precision, and logical analysis."[6] One can associate this form of philosophy with other fields of mathematics, natural sciences, and social sciences in their respective methodologies to gaining knowledge. Objectivity remains a top priority.

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[2] Md. Lawha Mahfuz, "Understanding the Division Between Analytic and Continental Philosophy," 1-2.
[3] Moti Mizrahi and Mike Dickinson, "The Analytic-Continental Divide in Philosophical Practice: An Empirical Study," 1-2.
[4] Mizrahi and Dickinson, "The Analytic-Continental Divide," 2.
[5] Mizrahi and Dickinson, "The Analytic-Continental Divide," 2.
[6] Mahfuz, "Understanding the Division," 3.

Continental philosophy, on the other hand, is often viewed as a more free-flowing, subjectivity-based approach. However, this does not mean that continental philosophy is entirely devoid of any argumentation or scientific approach. In fact, both analytic and continental philosophers' works use deductive, abductive, and inductive reasoning.[7] Continental philosophy often aims to synthesize knowledge from scientific objectivity along with subjectivity, believing that failing to do so will render philosophical knowledge incomplete.[8] For example, phenomenology, a well-established theory in the continental tradition, utilizes subjective experience and metaphysics to try and understand the nature of ethics in a more all-encompassing manner. While there are many different theories within the continental tradition such as hermeneutics, existentialism, structuralism, psychoanalysis, etc., phenomenology is arguably best suited for analysis of the analytic-continental divide in ethical thought.[9] This is because phenomenological philosophy is more easily put into conversation with analytic philosophies in comparison to other continental theories, as phenomenology's foundations are rooted in the analytic methodology of ancient virtue ethics.[10] The phenomenological work of Emmanual Levinas will be the focus of this thesis, since Levinas is one of the few phenomenologists who focuses heavily on ethics being an important part of human existence.[11]

Turning towards discussion of the distinct methodologies with analytic philosophy, it is crucial to note that there are three primary subgroup methodologies of analytic philosophy: deontology, consequentialism, and virtue ethics. Deontological ethics is a branch of analytic philosophy that is concerned with actions being right or wrong according to whether or not

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[7] Mizrahi and Dickinson, "The Analytic-Continental Divide," 14.
[8] Mahfuz, "Understanding the Division," 5.
[9] Simon Critchley, "Continental Philosophy: A Very Short Introduction," 29.
[10] This connection will be expanded upon in Chapters Five and Six; I want to thank my advisor, Jarrett Zigon, for helping me better understand the relationship between phenomenology and virtue ethics.
[11] Totality and Infinity is the book which this thesis will explore; the book includes many of Levinas' ideas but importantly his idea of ethics being the "first philosophy" to take place.

they follow established rules, laws, or principles. It can be best understood as focusing on an individual's obligations and duties to these fixed rules; if one acts in accordance with their duty, they are acting morally in the eyes of a deontological philosopher. The most well-established deontological theory is that of Immanuel Kant, who discussed his ethical theory several times throughout his life. This is most notably shown with works like *Groundwork for the Metaphysics of Morals*. Kant's theory has proved to be extremely useful as people argue in favor of having ethics be determined *a priori*, meaning before experience. People are intended to use their rationality to determine what ethics will require of them.[12] It is thus people's intentions, rather than the outcomes, that determine ethicality.

In direct opposition to deontology, consequentialism is another branch of analytic philosophy that determines whether or not an action is ethical based solely upon the outcome that occurs from it. Utilitarianism is the most broadly developed consequentialist theory, one which Kant's deontology was created to counteract. In simple terms, utilitarianism aims to maximize pleasure and minimize pain within every outcome. Ethical actors should work to promote the greatest principle of happiness in society, with the outcome that promotes the greatest good for the greatest number of people being the most ideal, and thus most ethical.[13] Actions are all equally measured in terms of utility, i.e how much they promote or remove happiness within a society.[14] English philosopher Jeremy Bentham first conceptualized this theory in his work *An Introduction to the Principles of Morals and Legislation,* which became the foundation for other utilitarian arguments that followed.

Virtue ethics, rather than focusing on *a priori* intentions and duties or outcomes with the most utility, aims to develop traits of moral character within individuals. The use of virtue to conceptualize ethics goes back to Ancient Greece philosophers, most notably with

[12] Immanuel Kant, "Groundwork for the Metaphysics of Morals," 39-40.
[13] Jeremy Bentham, "A Fragment on Government," 1.
[14] Jeremy Bentham, "An Introduction to the Principles of Morals and Legislation," 7.

Aristotle's work *Nicomachean Ethics*. Aristotle's work establishes that people should develop their personal character in alignment with pre-existing moral virtues. These virtues are what have been identified by Aristotle as essential to the concept of *eudaimonia*, which is best translated as "flourishing". One example of a virtue is prudence, which helps develop one's rational capabilities that are necessary to live a flourishing life.[15] To Aristotle, *eudaimonia* holds an intrinsic worth that cannot be used instrumentally to gain anything else; *eudaimonia* is the highest good.[16] Importantly, these virtues must be developed over time through habit and practice. Young people do not possess *eudaimonic* qualities when they are born, they must develop them as they make decisions and act upon the world around them.

I argue that the adoption of the "big three" analytic philosophies not only failed to prevent moral violations from occurring, but in fact played a significant role in perpetuating moral violations beyond what they would have been like without morality being a factor. The most prominent example of this is in Nazi Germany, where millions of innocent people were murdered, as part of the leaders of the Nazi Party attempting to create their conception of a perfect world in real life. In order to justify the killing of their victims, namely Jewish people, the Roma, disabled people, homosexuals, people of color, or political opponents, Nazis both adopted and perverted parts of each of the big three analytic theories to fulfill their vision of the perfect world. The mere fact that even *some* aspects of these theories were utilized to perpetuate the moral violations seen in Nazi Germany, rather than solely work to prevent them, provides sufficient reason to believe that these philosophies have failed at achieving their goal at being a universally applicable philosophy. Any moral philosophy that proclaims itself to be a universally applicable theory ought to be made up of tenets that achieve the basic goal of promoting morality rather than hindering it. Yet Kantian ethics, utilitarianism,

[15] Aristotle, "Nicomachean Ethics," 100.
[16] Aristotle, "Nicomachean Ethics," 8.

and virtue ethics alike all fail in this goal, as the Nazis were able to utilize aspects of these theories to commit moral violations and unnecessarily harm millions of innocent people.

To build a foundation for my argument, Chapter Two looks closely at the history of Nazi Germany to examine how exactly their actions are constitutive of moral violations to begin with. This historical background chapter begins with the events of the German Wars of Unification that started in 1863 and their societal impact, a nationalist and militaristic history which Nazi Germany looked upon fondly. The chapter then proceeds into the effects of World War I and the Great Depression on Germany, as well as an overview of the rise of Adolf Hitler, the leader of the Nazi Party. The chapter recounts the infamous actions taken as the Nazis sought to solidify their power in the German government and, eventually, create the Third Reich. Finally, the chapter concludes with the actions of the Nazi government throughout World War II, including the events of the Holocaust. Here, I argue that these actions constitute moral violations because of how Holocaust victims were subject to inhumane treatment and murder.

Transitioning into Chapters Three, Four, and Five, I discuss how the Nazis both adopted and perverted aspects of Immanuel Kant's, Jeremy Bentham's and Aristotle's philosophies respectively. For example, denying Jewish people rights given to other "Aryan" Germans was considered a necessity by the Nazis in order to fulfill the Kantian duties they were bound to follow. Kantian philosophy argues that one maintains a duty to respect the law, because the law is something that is constitutive of our freedom since it is self-imposed from rational autonomy. The use of gassings within concentration camps by Nazis is an example of their adoption of utilitarian ideology; Nazis argued that the most optimal outcome from the utilitarian calculation would be produced only when the pure "Aryan" society was finally rid from the minorities who were believed to be a waste of resources and a drag on society. Virtue ethics was adopted by the Nazis as they attempted to instill values of

nationalism, scientific racism, militarism, antisemitism, and nihilism in their communities through various means, such as programs like the Hitler Youth.[17] These virtues had been present in the pre-World War I period of Germany, which Nazis like Hitler idolized as the glory days of their nation and sought to bring back after their country was destroyed in the aftermath of the first World War. Exploring the extent to which Kantian ethics, utilitarianism, and virtue ethics were adopted in Nazi society will be the focus of Chapters Three, Four and Five respectively.

Having established the failure of the big three analytic philosophies in Nazi Germany in perpetuating their moral violations against their victims, Chapter Six turns to consider phenomenology as an alternative approach to ethics. Phenomenology, unlike the other three analytic philosophies discussed, was not adopted by the Nazis as they committed their crimes. Instead, the Nazis outright rejected the tenets of Levinasian phenomenology as they carried out the vision of a perfect Germany imagined by Adolf Hitler. Nazis sought to prevent the face-to-face encounter with the Other, which Levinas describes as the crucial moment where ethical responsibility and philosophy itself first takes place, through the segregation and eventually killing off of the populations whom they deemed inferior for one reason or another.[18] This face-to-face encounter is also crucial for societal virtues to be fostered, as individuals can rehabilitate societal virtues when they find themselves sharing virtues in common with the others around them, and as they each respectively fulfill the responsibilities they have towards others they encounter.[19] This thesis will show that it is precisely because the Nazis tried to avoid these face-to-face encounters, and thus evade the responsibility that

[17] Antisemitism is spelled the way it is in this thesis very deliberately; According to Professor Manuela Achilles, spelling antisemitism with a hyphen and a capitalized S implies there is something called "Semitism" which in turn legitimizes the Nazi pseudoscientific claim that Jews are racially distinct from others, classifying them alone as "Semites" when real Semites are just those people who speak Semitic languages. In other words, to use "anti-Semitism" instead of antisemitism is to use the language of the Nazis, which I undoubtedly wish to avoid.
[18] Emmanuel Levinas, "Totality and Infinity: an Essay on Exteriority," 304.
[19] Levinas, "Totality and Infinity," 215.

they hold towards Jewish people as an unknowable yet still ethical being, societal virtues were unable to be rehabilitated in a deeply shattered post-World War I Germany. Rehabilitation would have required the Nazis to accept that the values they had idolized so much of pre-World War I Germany were fractured beyond repair in the aftermath of the total destruction of the war and as a result, any attempt to reinstate them exactly as they had existed before would be impossible.

I contend that the people of post-World War I Germany ought to have tried to rehabilitate these values through embracing ethical face-to-face encounters with others. Had the Nazis not avoided the face-to-face encounter with Jewish people and their other victims as much as possible, they would have found it harder to commit the same moral violations they did under the guidance of the three analytic philosophies. This is because the face-to-face encounter allows the "Other" to act as a teacher towards an individual, known as the "Same", i.e. the self, allowing the Same to finally define itself as being in a state of relationality to others.[20] In other words, the self is fundamentally unknowable and can only learn about itself upon the face-to-face encounter with the Other.[21] Had the Nazis been able to learn from others about their own personal existence as a relational being, they would have been forced to accept their responsibilities towards other, distinct, ethical beings and learned that forcing Others to fit within their own personal worldview acts are in contradiction with this responsibility.

The phenomenology presented in Chapter Six is deeply complex, but it is crucial for understanding how we can begin to improve our academic discussions of morality in the modern world. Chapter Seven expands upon the work of Chapter Six by summarizing the key aspects of phenomenology , as well as discussing how phenomenology can work towards becoming a go-to moral philosophy alongside its counterparts of Kantian ethics,

[20] Levinas, "Totality and Infinity," 171.
[21] Levinas, "Totality and Infinity," 299.

utilitarianism, and virtue ethics in the analytic tradition. Here, it is established that in order for phenomenology to finally be taken seriously as a moral philosophy, it must first ground itself within the structures of society. People encounter each of the big three analytic theories in the daily, mundane moments that they engage with societal structures around them, such as the legal institution, healthcare system, and religious organizations. Tenets of analytic philosophies have been deeply ingrained in each of these systems as they have been developed over the many centuries since their conception in society. However, phenomenology lacks the same structural support as the big three analytic philosophies. Therefore, it will likely continue to be rejected in discussions of morality, just as it was by the Nazis. Until phenomenology is deeply ingrained in the structures of our society, we will likely continue to see the moral violations committed by the failures of analytic moral philosophies. Additionally, phenomenology will continue to be wrongly put on the backburner in ethical situations where it could have prevented moral violations from occurring.

Having established the arguments that this thesis will be making, let us now turn to the history of Nazi Germany. We must understand what moral violations even *are* before we can use philosophy to prevent them.

# Chapter Two
## Historical Background

"Nothing, in a sense, helped the Nazis to kill Jews so much as the framework of a race war in which their own antisemitic priorities fit very easily."[1]

*-Christopher Browning*

To understand the nuances of the Nazi regime, we must first go back to the roots upon which they grew. We can find the first major historical influence upon the Nazi regime in the nineteenth-century German Wars for Unification and the actions of Otto von Bismarck. Before these wars led to the unification of Germany into one state, it existed as a conglomerate of smaller, divided, decentralized states. The largest of these states was Prussia, led by King Wilhelm I. Bismarck, as prime minister of Prussia, was directed by Wilhelm I to pursue the wars of unification.[2] Starting in 1863, Prussian and Austrian forces united to fight Denmark and won control of the territories of Schleswig and Holstein.[3] The second war for unification took place between the formerly allied Prussia and Austria, who fought for hegemony in northern Europe in 1866.[4] Prussia won this second war, ending Austrian influence in the region. The final war for unification was between France and Prussia in 1870-1871, which saw France defeated when southern states joined Prussia's side. Upon the conclusion of this war, the second German Empire was established by proclamation in the Hall of Mirrors at the Palace of Versailles on January 18, 1871.[5] The creation of the second

[1] Christopher Browning, "An Interview with Prof. Christopher Browning," by Ephraim Kaye, 5.
[2] Manuela Achilles, "Germany's Special Path," (Lecture for HIEU 3390-Nazi Germany, University of Virginia, Charlottesville, Virginia, August 28, 2023).
[3] Achilles, "Germany's Special Path," August 28, 2023.
[4] Achilles, "Germany's Special Path," August 28, 2023.
[5] Achilles, "Germany's Spexial Path," August 28, 2023; Catherine Epstein, "Nazi Germany: Confronting the Myths," 2; The first German Reich, often called the Holy Roman Empire, existed between 962 with the coronation of King Otto I and abdication of the throne in 1806 by King Francis II.

German Empire was a very popular endeavor in the eyes of German elites, since it promised to bring them more economic prosperity than they would have had prior to unification.[6] More German territories meant that more industrialization and commercial trade could take place.

The culture of Germany during these wars for unification was heavily influenced by Bismarck himself. Described as an "ultra-conservative monarchist," Bismarck rejected past attempts to unify Germany under a liberal constitution in 1848. Instead, Bismarck sought to achieve unification in a more militaristic manner. This militarism was seen clearly in the "Blood and Iron" speech given by Bismarck on September 30, 1862, where he described that only war, rather than parliamentary debate, could bring about a unified German state.[7] Sentiments of nationalism also flamed high after the German Wars for Unification ended, as the new German Empire was viewed as an organic entity with a unique and supreme German "essence" and folk culture that united each individual regardless of town.[8] German nationalism also had a distinctly anti-French bias, which also helped create more cultural agreement within the new German Empire.[9]

After the wars for unification, Bismarck was appointed Chancellor and was nicknamed the "Iron Chancellor" for his past militaristic efforts.[10] However, his role as Chancellor ended in 1888 when King Wilhelm II ascended to the throne upon the death of his father, Wilhelm I.[11] Wilhelm II dismissed Bismarck and shifted the German Empire towards an era of more aggressive foreign policy aimed at enhancing the state's power. This era of *Weltpolitik*, translated as "world policy", brought about more economic industrialization through colonialism.[12] This colonialist period of German politics was heavily influenced by

[6] Epstein, "Nazi Germany," 2.
[7] Achilles, "Germany's Special Path," August 28, 2023.
[8] Epstein, "Nazi Germany," 4.
[9] Achilles, "Germany's Special Path," August 28, 2023.
[10] Epstein, "Nazi Germany," 2.
[11] Epstein, "Nazi Germany," 3.
[12] Epstein, "Nazi Germany," 4.

cultural values of scientific racism. A new generation of German academics increasingly studied the works of Charles Darwin, primarily his work *On the Origin of Species*.[13] This increased attention gave rise to the theory of Social Darwinism, which applied Darwin's concept of natural selection to human society, arguing that only the most fit humans would/should prevail.[14] The non-European populations of the German colonies often faced racial discrimination, as they were placed in concentration camps where they performed forced labor to benefit the Imperial German economy.[15]

Alongside the development of the Social Darwinism, came a change to German antisemitism. Antisemitism was not a new phenomenon in the history of Germany. Even in antiquity, Christians held prejudicial beliefs about Judaism and subjected Jews to discriminatory practices because of their religious beliefs that they were to blame for Christ becoming a martyr.[16] However, this prejudice remained mostly religious until the development of Social Darwinism in the late nineteenth century.[17] Eventually Jewish people, and thus antisemitism, became racialized; Jews were distinguished from other non-Jews as their own separate and identifiable race.[18] Racializing Jews made it so they were hated for their very existence, as they could never escape their now-racialized Jewish origins. Antiquated religious prejudice were less intense, since Jews could of course convert and become accepted as Christians. But racialization made this conversion to Christianity impossible; one may have become a Christian-follower religiously but remained a Jew ancestrally.

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[13] Epstein, "Nazi Germany," 5.
[14] Achilles, "Germany's Special Path" August 28, 2023.
[15] Achilles, "Germany's Special Path" August 28, 2023.
[16] Epstein, "Nazi Germany," 6.
[17] Epstein, "Nazi Germany," 6.
[18] Epstein, "Nazi Germany," 6.

Christianity was the basis for religious beliefs among the German folk under Wilhelm II, however German culture under Wilhelm II also saw the development of nihilism. This growth was especially apparent within the works of Friedrich Nietzsche. His 1901 book, *The Will to Power*, claimed that German values, especially those within religion, no longer held any grounding in society.[19] Nihilism was not yet widespread at the turn of the century, but Nietzsche's work during the reign of Wilhelm II would soon grow and expand as time progressed, particularly during/after the events of World War I.

The most influential moment of Wilhelm II's reign came when Germany entered World War I in 1914. Right before the start of the war, Germany existed as an economically prosperous nation with plenty of scientific and technological developments.[20] However, Germans were growing increasingly frustrated with Wilhelm II's *Weltpolitik* because they were wholly unsuccessful in bringing about German hegemony on the world stage and instead only increased foreign hostilities.[21] World War I is often understood as starting with the assassination of the heir to the Austro-Hungarian throne, Archduke Franz Ferdinand and his wife Sophie, Duchess of Hohenberg by a Serbian nationalist. In June of 1914[22] Austrians incorrectly believed that the Serbian government was behind the assassination, and were debating taking militaristic action.[23] Viewing the Austro-Hungarian empire as a political ally, Wilhelm II issued a "blank-check" of support, stating that they would back them behind any choice of action they decided upon.[24] Austria chose to offer a series of harsh demands to Serbia, which Serbia refused to fulfil since doing so would have violated their sovereignty.[25] Russia and France subsequently mobilized their militaries to support Serbia, while Germany

[19] Friedrich Nietzsche, "The Will to Power," 8-11.
[20] Epstein, "Nazi Germany," 7.
[21] Epstein, "Nazi Germany," 7.
[22] Epstein, "Nazi Germany," 7.
[23] Epstein, "Nazi Germany," 7.
[24] Epstein, "Nazi Germany," 7-8.
[25] Epstein, "Nazi Germany," 8.

did the same to support the Austro-Hungarians.[26] On August 1, 1914, Germany officially declared war on Russia and began to mobilize troops to take over the neutral state of Belgium and eventually France.[27] In response to Germany's takeover of Belgium, Britain declared war on Germany and joined the side of France and Russia.[28] Germany started this war with feelings of patriotism under Wilhelm II's concept of *Burgfrieden*, which directly translates as "social peace" but is best understood as an appeal for unity in the nation.[29] This call for unity fanned the already existing flames of nationalism; positive vibes and good spirits were felt across Germany. Unity under a common German identity was broadly felt when Wilhelm II proclaimed, "I no longer recognize any parties or any confessions; today we are all German brothers and only German brothers."[30]

Germany entered the war with the "Schlieffen Plan," which aimed to defeat France first and then turn towards Russia after. The strategy was designed to prevent Germany from splitting its troops and fighting a war on two different fronts.[31] However the aims of the Schlieffen Plan completely fell apart when Germany was unable to defeat France on the Western Front, leading to a military stalemate. Trench warfare reigned supreme throughout these battles, further delaying the conflict. Eventually, the stalemate came to a halt when Germany was officially defeated at Battle of Verdun in December of 1916, where German soldiers were quickly picked off by new military technologies, such as poison gasses and machine guns.[32] Although the Western Front was disastrous for the German military, they saw more military successes in the Eastern Front under the leadership of General Paul von

[26] Epstein, "Nazi Germany," 8.
[27] Epstein, "Nazi Germany," 8.
[28] Epstein, "Nazi Germany," 8.
[29] Epstein, "Nazi Germany," 8.
[30] Manuela Achilles, "Colonialism, Racism, and World War I" (Lecture, HIEU 3390-Nazi Germany, University of Virginia, Charlottesville, VA, September 13, 2023)
[31] Epstein, "Nazi Germany," 8.
[32] Epstein, "Nazi Germany," 8.

Hindenburg and his chief of staff, Erich Ludendorff.[33] These triumphs were epitomized by Hindenburg and Ludendorff successfully stopping the Russians in August 1914 at the Battle of Tannenberg, making them national heroes to the German population.[34]

As the war went on, Germany started to lose momentum. Defeats were building in number and German politicians, especially with the increased pressure from the United States declaring war on Germany in April of 1917, started to call for an immediate end to the war.[35] Germans became disheartened and resentful towards industrialists, who they often imagined as Jewish, earning profits at home while German soldiers died in the field.[36] These emotional reactions led to increased feelings of racialized antisemitism within German culture. By September 1918, there was little doubt in the eyes of German military leaders that they would lose the war. On September 29th, Hindenburg and Ludendorff advised Wilhelm II to negotiate for an armistice. During the war, Ludendorff had circulated the "stab-in-the-back" myth, claiming that Germany would not lose because of military defeats in the field but because of betrayal, "by the treachery of Jews and socialists at home."[37] While antisemitism reigned strong in the German Empire, Germans were more overwhelmed by the feelings of shame and embarrassment from the loss of German prestige and glory on a global scale in the immediate aftermath of the war.[38]

On November 9, 1918, King Wilhelm II abdicated his throne, and a new republic was established to replace the failed monarchy. This republic, known as the Weimar Republic, would now lead the citizens who were shocked at their defeat. The Treaty of Versailles, an agreement written by the Allied powers to hold Germany responsible for their actions during

[33] Epstein, "Nazi Germany," 8.
[34] Epstein, "Nazi Germany," 8.
[35] Epstein, "Nazi Germany," 9.
[36] Epstein, "Nazi Germany," 9.
[37] Epstein, "Nazi Germany," 11.
[38] Epstein, "Nazi Germany," 11.

the war, was signed by the leaders of the Weimar Republic on June 28, 1919.[39] The humiliating treaty brought Germany to a new low; they were forced to give up territory they had gained in the war *plus* their overseas colonies, reduce their army to only 100,000 men, and pay reparations for the damages caused by the war.[40] It is important to note that the Treaty of Versailles did not impose burdens that Germany would have been unable to bear on its own. While the period of 1919-1923 saw a crisis of inflation and political instability with the new regime, by 1924, Germany was successfully finding ways to mitigate the terms of the treaty, both economically and militarily. Although Germany's army was dramatically reduced in its size, the leaders of the Weimar Republic made security guarantees with neighboring countries to provide some security.[41] Financially, the nation appeared to have a brighter future; Weimar Chancellor Gustav Stresemann was able to end the problems of inflation by introducing a new currency in 1924 that was linked to the gold standard, called the *Reichsmark*.[42] At this point in history, under the terms of the Treaty of Versailles, everything looked manageable and Germany seemed prepared to recover their stability.[43] However, all of this greatly changed with onset of the Great Depression in 1929, which killed the progress made by the Weimar Republic for good.

Before delving into the Great Depression, it is important to consider the life of Adolf Hitler and the Nazi Party up to this point. As a young adult, Hitler had first aspired to be an artist; he moved to Vienna to attend the Academy of Fine Arts but was ultimately rejected by the school.[44] As a failed art student, Hitler hit rock bottom and was forced to live on the streets of Vienna; Hitler existed as a sad loner with minimal friendships or romantic

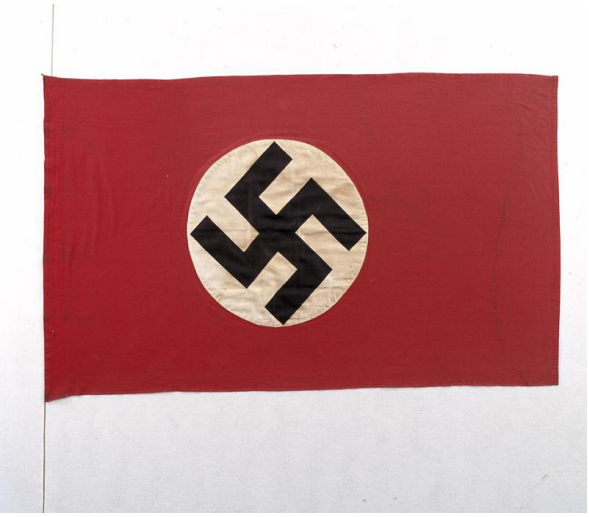
[39] Epstein, "Nazi Germany," 11.
[40] Epstein, "Nazi Germany," 11-12.
[41] Epstein, "Nazi Germany," 13.
[42] Epstein, "Nazi Germany," 17.
[43] Epstein, "Nazy Germany," 13-15.
[44] Epstein, "Nazi Germany," 22.

connections to support him.[45] He was eventually able to scrape together enough money to temporarily find shelter in a men's home and eventually move to Munich, Germany in 1913.[46] When Germany declared war on Russia in 1914, Hitler volunteered to serve in the military as he had long admired the imperial state led by Wilhelm II.[47] Hitler was wounded in October of 1916, causing him to return back home to Munich. Like many others upon the conclusion of the war, Hitler remained shocked at the German defeat and came to resent Jews even further, as he believed that they collectively sought to, "destroy all of humanity."[48]

Hitler first encountered the extremely right-wing political party he would eventually lead, the *Deutsche Arbeiterpartei* (DAP), translated as the "German Workers' Party," in 1919.[49] Upon joining the party, Hitler was able to spread his beliefs rather quickly to the other members. He appealed to others by giving them a place to focus and channel the resentment and embarrassment they felt about the end of World War I: the Jews.[50] Hitler argued that the elimination of Jewish people would restore the honor, glory, values, and strength back to Germany that they had lost. However, Hitler's views were in no way original to him. Many other people shared similar antisemitic views, Hitler was just able to achieve political success with them because of his abilities as a sensational speaker.[51] The lively natures of Hitler's speeches, combined with his great ability at sparking emotions in the minds of his audiences, easily translated into success of the DAP in Weimar politics. The Party's name was eventually changed to the *Nationalsozialistische Deutsche Arbeiterpartei* (NSDAP), translated as the "National Socialist German Workers' Party," in 1920 after Hitler had advocated for the change to appeal to a broader swath of the population.[52] While National

[45] Epstein, "Nazi Germany," 23.
[46] Epstein, "Nazi Germany," 22-23.
[47] Epstein, "Nazi Germany," 23-24.
[48] Epstein, "Nazi Germany," 24-25.
[49] Epstein, "Nazi Germany," 25.
[50] Epstein, "Nazi Germany," 26.
[51] Epstein, "Nazi Germany," 26.
[52] Epstein, "Nazi Germany," 27.

Socialism was the name of the ideology Hitler espoused, there was little doubt that he emphasized the "National" part of the name far more than he ever emphasized the "Socialist" aspect. Hitler's commitment to nationalism remained stronger than any supposed commitment to socialist principles within his policies during the Nazi regime. Around the same time as the name change, Hitler adopted the infamous Nazi party banner seen below, which appropriated the symbol of the swastika from Hinduism, along with the "Heil Hitler" salute as the official greeting between party members.[53] By 1926, the salute became a compulsory action for all NSDAP members.[54]



Seeing success from his leadership in the NSDAP, Hitler became emboldened to try and seize power from the leaders of the Weimar republic with a coup. On the night of November 8, 1923, Hitler and leaders from other right-wing organizations began what became known as the Beer Hall Putsch.[55] Their original goal was to try and claim leadership of Germany by the early morning of November 9, 1923, on the fifth anniversary of the establishment of the Weimar Republic.[56] However, the coup was poorly planned and Hitler and his allies were forced to accept that they would be unable to take control; they resorted to a "Plan B" where they marched to the Munich city center instead.[57] Two days after the events, Hitler was arrested and the Weimar Republic remained standing. Sentenced to five

[53] Epstein, "Nazi Germany," 28; Smithsonian, National Museum of American History Behring Center, "German Nazi Swastika Flag," photograph.
[54] Epstein, "Nazi Germany," 30.
[55] Epstein, "Nazi Germany," 29.
[56] Epstein, "Nazi Germany," 29.
[57] Epstein, "Nazi Germany," 29.

years in jail, Hitler spent his jail time writing his infamous book *Mein Kampf*, translated as "My Struggle."[58] *Mein Kampf* was part-autobiographical but was undoubtedly also a piece of propaganda created to further spread Hitler's personal ideology. It is full of arguments against Jewish people and their supposed racial inferiority, as well as strong anti-Soviet sentiments. Hitler furthered the societal racialization of antisemitic prejudices by frequently referring to, "the Jewish race" as something distinct and separate from the ideal pure "Aryan" race in *Mein Kampf*.[59] Hitler was eventually released early from jail in December of 1924, determined to gain power through more legitimate means.[60] The imprisonment of Hitler brought renewed enthusiasm to his supporters, who now felt even more devoted to his cause. This enthusiasm would finally bring breakthrough successes to the NSDAP when the Great Depression made its devastating impact on the entire world.

The NSDAP already had a trend of increased support prior to the end of 1929, with gains in local and state elections. However, when 1.9 million Germans were out of work at the end of 1929, a number that increased to 6.2 million Germans by 1932, "the door to Nazi triumph," was officially opened.[61] The 1930 elections to the Reichstag, the legislative body of the Weimar Republic, saw the Nazis make massive political gains. After the elections, the NSDAP now comprised 18.3% of the electorate, a massive jump from their previous 2.6%, making them now the second largest party in the Reichstag.[62] Nazi voters were drawn to the NSDAP by their messages of German unity and strength, which reminded them of the same unity they had felt at the start of World War I.[63] While these gains were legally made, it's important to note that the Nazis did employ various harmful tactics throughout their campaigns. For example, Nazis would discriminate against and boycott anyone who was not

[58] Epstein, "Nazi Germany," 30.
[59] Adolf Hitler, "Mein Kampf," 83.
[60] Epstein, "Nazi Germany," 30.
[61] Epstein, "Nazi Germany," 33.
[62] Epstein, "Nazi Germany," 34.
[63] Epstein, "Nazi Germany," 37.

a Nazi and would heckle the political events run by members of other parties. Historian Catherine Epstein paints the situation clearly by stating that, "while the Nazis assumed power by the letter of the law, at every turn they violated the spirit of the Weimar Constitution."[64] The Nazis fought against the Weimar Republic every chance they had.

With the electoral gains of 1930, Hitler saw his chances of being appointed Chancellor of the Weimar Republic increase, although he could only be appointed Chancellor by the President. War-hero Paul von Hindenburg held the presidency in 1930 however, to the detriment of Hitler, he was hesitant of the NSDAP.[65] The year 1931 did not see any major political gains for the Nazis, but support was still on a gradual incline. However, things changed in 1932 when Hitler directly challenged Hindenburg for President. Hindenburg eventually won in a second round election after he failed to secure an absolute majority in the first round, but Hitler was still able to capture an impressive 37% of the vote.[66] Eventually, a political stalemate took place and Hindenburg found himself in a position where he needed to acquiesce some power to Hitler in order to make political progress.[67] However, Hitler took a risk and asserted that he would only accept the position of Chancellor or else he would not be a participant in Hindenburg's government at all.[68] Reluctantly, Hindenburg felt he had little choice but to swear Hitler in as Chancellor of Germany since he would lose a massive amount of political support without the NSDAP, which occurred on January 30, 1933.[69]

Upon his ascension to chancellorship, Hitler immediately took steps to take total control of Germany. His first step in this direction was to alter the Weimar Constitution in his favor by passing the Enabling Act, which would allow Hitler to issue legislation without the

[64] Epstein, "Nazi Germany," 36.
[65] Epstein, "Nazi Germany," 37.
[66] Epstein, "Nazi Germany," 38.
[67] Epstein, "Nazi Germany," 40.
[68] Epstein, "Nazi Germany," 39.
[69] Epstein, "Nazi Germany," 40.

consent of the Reichstag, the state's parliamentary institution, for four years.[70] By bullying members of the Catholic Center Party, Hitler and his supporters were able to reach the required two-thirds majority to pass the Enabling Act by a vote of 441 to 94.[71] Upon its passage, Hitler was now free of any control that the legislature may have held over his authority. While the Enabling Act was only valid for four years, it was renewed in both 1937 and 1939 and became officially permanent in German law in 1943.[72]

Throughout 1933, Hitler politically maneuvered all other parties into dissolving themselves, or merging with the NSDAP, until he eventually declared all other parties illegal on July 14, 1933.[73] Under Hitler's chancellorship, Germany followed a system of *Gleichshaltung*, translated as coordination, under which all aspects of life were altered to fit the ideals of the Nazi party.[74] This coordination was key to achieving the *Volksgemeinschaft*, understood as a unified national community that Hitler aimed at creating. Aspects of *Gleichshaltung* included creating a new Reich Propaganda Ministry, disbanding non-Nazi affiliated organizations and associations, and the public burning of books that did not align with Nazi ideology.[75] Another move that Hitler made in order to assure Nazis became the ultimate holders of power was to pass a law that asserted, "on the president's passing the office of Reich president would be joined to that of Reich chancellor."[76] President Hindenburg passed away on August 2, 1934 and Hitler assumed his powers, but altered his title, calling himself the "Führer and Reich Chancellor."[77] This moment was crucial for the transition from the Weimar Republic into the Nazi regime, referred to as the Third Reich.

[70] Epstein, "Nazi Germany," 47.
[71] Epstein, "Nazi Germany," 48.
[72] Epstein, "Nazi Germany," 48.
[73] Epstein, "Nazi Germany," 49.
[74] Epstein, "Nazi Germany," 50.
[75] Epstein, "Nazi Germany," 50-51.
[76] Epstein, "Nazi Germany," 54.
[77] Epstein, "Nazi Germany," 54.

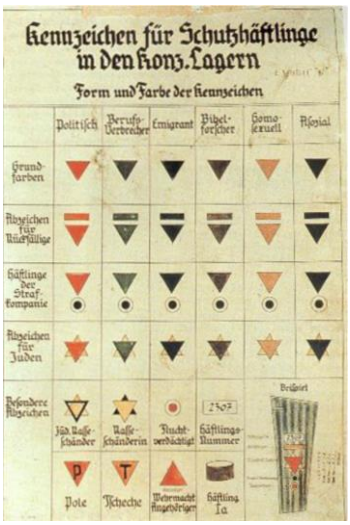
From this moment in 1934 onwards, Hitler leaned into developing the military forces as dedicated soldiers. Army officers and soldiers no longer swore an oath to uphold the Weimar Constitution, but instead swore an oath of unconditional loyalty to Hitler as Führer.[78] Along with the change to the oath, Hitler merged the *Schutzstaffel* (SS), a paramilitary organization of the NSDAP, with the already established military and police forces of the government.[79] SS men were placed in all police organizations and, as a result, the German police became a hybrid of state officials and party officials. This meant that, "police members who were SS members could claim to be working under SS orders" and thus easily place themselves in positions of authority over others, terrorizing them into submission.[80] Another role that the SS played was the management of concentration camps starting in 1933. Separate from the regular police and prison systems, the camps were sealed off from the rest of Germany; inmates were made to perform forced labor.[81] Legal systems in Germany were manipulated to work towards Hitler's national community by replacing judges with those who were more dedicated to Nazi ideals.[82] The courts became more of a way to uphold Nazi ideologies rather than establishing justice and protecting individual's rights. Surprisingly, multiple aspects of Weimar law remained intact, with only those that stood in the way of the Nazis being altered.[83]

It's important to understand society's responses to these Nazi changes and how they impacted people's everyday lives. Historian Ian Kershaw has argued that as a response to the new Nazi government, officials began "working towards the Führer," in their actions. Kershaw argues that Hitler acted in the role of a charismatic leader, as defined by sociologist

[78] Epstein, "Nazi Germany," 54.
[79] Epstein, "Nazi Germany," 55.
[80] Epstein, "Nazi Germany," 58.
[81] Epstein, "Nazi Germany," 58.
[82] Epstein, "Nazi Germany," 59.
[83] Epstein, "Nazi Germany," 60.

Max Weber. Charismatic leaders, like Hitler, have the status of heroic greatness as they respond to some crisis experienced by a society.[84] Since Hitler became this great, mythical figure, his will, commonly referred to as the "Führer's will," was something that government officials and even the general public could unite around.[85] People would thus anticipate what the Führer wanted and try to produce action that they believed he would desire even if Hitler never expressed himself as wanting this action.

Throughout the 1930s, more and more actions were taken in the name of bringing Germany closer to Hitler's racially pure *Volksgemeinschaft*. Nazi officials took actions to persecute not only Jewish people, but also disabled communities, black people, homosexuals, the Roma (i.e. "Gypsies"), Polish people, political adversaries, "habitual criminals", homeless people, "alcoholics", "prostitutes", "work-shy" people, and anyone who's existence was deemed to be in opposition to Nazi ideals.[86] Each of these groups were characterized as a common external group, referred to as *Volksfremde* in German, that was independent of the internal "Aryan" people, known as *Volksgenossen*. The term *Volksfremde* emphasizes the foreignness of these people; it is translated into English as "community alien" while *Volksgenossen* translates to "community comrade."[87] Many of these groups were also made to publicly identify themselves by wearing badges of a certain color that identified them as members of a certain group, seen in the chart pictured to the right.[88] For example, Jewish




[84] Ian Kershaw, "'Working Towards the Führer' Reflections on the Nature of the Hitler Dictatorship," 111; Ian Kershaw, "Hitler: Profiles in Power," 10-11.
[85] Epstein, "Nazi Germany," 65.
[86] Epstein, "Nazi Germany," 70; Manuela Achilles, "Consolidation of Power," (Lecture for HIEU 3390-Nazi Germany, University of Virginia, Charlottesville, Virginia, October 16, 2023); I avoid calling the Roma people "Gypsies" in this thesis because the term 'Gypsy" has pejorative social connotations, often used as an insult against the Roma for their wandering lifestyles both historically and in contemporary times.
[87] Achilles, "Consolidation of Power," October 16, 2023.
[88] Manuela Achilles, "Consolidation of Power," October 16, 2023; The photograph of badge identification chart is sourced from Achilles' lecture slides on October 16, 2023.

people were forced to wear yellow badges and Communists were forced to wear red. Each of these alienated groups were targeted for their racial threats, rather than any criminal offenses. For example, homosexual men were charged with crimes but were actually viewed as a threat to the national community because of their refusal to produce more "Aryan" children insofar as they had sexual relations with other men.[89] In a misogynistic way, lesbianism was never explicitly criminalized by the Nazis since women were already viewed as passive figures without positions of power, making them non-threatening to the Nazi regime.[90]

Each of these "community aliens" were subject to Nazi policies of, "sterilization, castration, abortion, incarceration, and, eventually, murder."[91] In cases of sterilization and castration, the Nazis passed the Law for the Prevention of Progeny with Hereditary Diseases, nicknamed the Sterilization Law, in July 1933.[92] The law aimed to create a racially pure society by implementing compulsory sterilization procedures for those with hereditary "inferior" genetics, such as those with hereditary epilepsy, blindness, schizophrenia, manic depression, deafness, "feeblemindedness" and more.[93] Another action against "community aliens" occurred when Heinrich Himmler, leader of the SS, set up the Reich Office for Combating Homosexuals and Abortion. Homosexuality for men and abortions for "Aryan" women were seen as threatening to German birth rates, which was viewed as crucial for the continuation of the Third Reich.[94] Finally, the most famous action against "community aliens" by the Nazis is seen in the passage of the collection of Nuremberg Laws on September 15, 1935, which explicitly attacked the legal rights held by "community aliens".[95]

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[89] Epstein, "Nazi Germany," 79.
[90] Epstein, "Nazi Germany," 82.
[91] Epstein, "Nazi Germany," 79.
[92] Epstein, "Nazi Germany," 79.
[93] Epstein, "Nazi Germany," 79.
[94] Epstein, "Nazi Germany," 82; The creation of this office therefore makes the Nazi's views on abortion rather interesting, since they were more than willing to perform them in the cases of non-Aryans to prevent, "inferior races," from repopulating.
[95] Epstein, "Nazi Germany," 84.

For example, the Reich Citizenship Law made it so that only people of German descent were eligible to be a citizen of the Reich.[96] Additionally, the Law for the Protection of German Blood and Honor made marriage and sexual relations between Jews and Germans illegal.[97] Jewish people were viewed by the Nazis as the largest threat precisely because they could not be easily identified as separate from "Aryans." This problem of identification led to lots of pseudoscience, especially by Social Darwinists, that tried to find identifiable traits which could be used to prove the otherness of Jewish individuals. Since Jews were the number one enemy of the Nazi national community, more antisemitic propaganda that attacked Jews not for religious reasons, but for their existence as a separate race, was created. Jewish art, architecture, films, music, and academic scholarship were also condemned.[98] In place of any Jewish cultural contributions, Nazis urged people in Germany to support only those advancements and creations made by "Aryan" Germans.

As the 1930s progressed, Hitler and the Nazis became more emboldened to expand the territory of the Third Reich, which they viewed as a crucial need for the Third Reich. The concept of *Lebensraum*, translated as living-space, sought to give more room for the German Nazis to live and further geographically spread Nazi ideology.[99] *Lebensraum* is key to understanding the beginnings of World War II. Hitler's decision to invade Poland on September 1, 1939, which set the war irreversibly in motion, was motivated by his quest to achieve *Lebensraum* in addition to the extra resources more land could provide.[100]

After the German invasion of Poland, Britain and France declared war on Germany to stop Hitler from making any more gains in territory and resources. Up to this point, Germany already had the largest army and most well-trained air force in Europe, which Britain and

[96] Epstein, "Nazi Germany," 84.
[97] Epstein, "Nazi Germany," 84.
[98] Epstein, "Nazi Germany," 86-92.
[99] Epstein, "Nazi Germany," 92.
[100] Epstein, "Nazi Germany," 123.

France hoped to stop from further development.[101] At first, Germany and the Soviet Union were allied with one another with a Non-Aggression pact, where they both planned to not attack each other and, in secret, agreed to divide Eastern Europe between them after the war.[102] However, this pact was violated when the Nazis invaded the Soviet Union with Operation Barbarossa on June 22, 1941.[103] The Nazis sought to expand their land into Soviet territory, and also fight against the ideologies of Joseph Stalin, the Soviet leader. The communist aspects of Stalinism frequently clashed with Hitler's fascist ideologies.[104] Germany also allied itself militarily with Italy, another fascist state, who sought to target Britain and France. While Germany wanted to ally with Japan, the Japanese at first refused a military alliance. Japan would only agree to an alliance if it targeted the Soviet Union, who they were already fighting a war against in Manchuria.[105] But this issue was resolved once Nazis decided upon their attack on the Soviets in 1941, Japan and Germany finally could agree on the terms of their alliance.

Hitler faced a problem when the war against the Soviets did not go according to plan, the Nazis had underestimated the Soviets and quickly discovered, "the Red Army had more and better military equipment than German intelligence had presumed."[106] With this war becoming much harder than they realized, the Nazis lacked strategy and internally argued about what to do next. Hitler elected to follow Operation Typhoon starting in late September 1941, a plan designed to take over Moscow. The timing of this operation was important, as Operation Typhoon saw success at first but started to falter when the cold of the winter months became more intense; Germans were not prepared to fight in winter the same way

[101] Epstein, "Nazi Germany," 124.
[102] Epstein, "Nazi Germany," 124.
[103] Epstein, "Nazi Germany," 136.
[104] Epstein, "Nazi Germany," 139.
[105] Epstein, "Nazi Germany," 124.
[106] Epstein, "Nazi Germany," 137.

Soviets were.[107] In order to more easily take on the Soviet War in the East, Hitler wanted to have Japan focus its energy on the Western nations. If they agreed to focus on the West, Hitler promised Japan that Germany would declare war on the United States.[108] This series of events took place as planned when Japan attacked Pearl Harbor on December 7, 1941, and Hitler declared war on the United States on December 11th.[109]

Embedded within the war efforts of Nazi Germany was the genocide of millions of Jews in events that comprise the Holocaust. While many Jews were killed in gas chambers within concentration camps, plenty of others were murdered outside of Germany. Polish Jews and Soviet Jews were killed for their existence as members of the Jewish "race" even though they did not present the same internal threat as German Jews. However, genocide was not limited to just Jews; disabled people and the Roma were also targeted.[110] Nazis began resorting to murderous tactics against the disabled population first, whom they subjected to "euthanasia" practices as a mercy death to "humanely" free them from their disabled existence. However, this understanding of euthanasia was anything but humane, as it was done to disabled people without their consent and was in reality, "a euphemism for murder."[111] Both the Jewish people and the Roma were subjected to ghettoization at the start of the war, separating them geographically from the "Aryan" population but not yet killing them. However, this expanded when both groups were sent to concentration camps and death camps at roughly the same time when Hitler and the Nazis decided on pursuing the "Final Solution" where all Jews were to be murdered.[112] Historian Christopher Browning argues that

[107] Epstein, "Nazi Germany," 138.
[108] Epstein, "Nazi Germany," 146.
[109] Epstein, "Nazi Germany," 146.
[110] Epstein, "Nazi Germany," 150.
[111] Epstein, "Nazi Germany," 152-153.
[112] Epstein, "Nazi Germany," 161; Concentration camps and death camps are often seen as the same thing but they were actually very different in purpose. There were roughly 42,500 concentration camps that existed solely for forced labor, while there were only six death camps in total where people were massacred. Only Auschwitz and Majdanek, two of the six total death camps, also contained concentration camps with forced labor alongside their facilities to murder their victims. Additionally, while the "Final Solution" targeted Jews primarily since

Hitler and the Nazis officially decided upon the "Final Solution" starting in October 1941 in the wake of their military successes against the Soviet Union, although Hitler had originally pondered the idea back in the summer of 1941.[113] The rate of deportations to death camps in Poland greatly increased in January of 1942 following the events of the Wannsee Conference.[114]

The genocide of the Holocaust took place through multiple methods, such as mass shootings carried out in pogroms, drownings in marshes, and poisonous gassings.[115] Mass shootings were used mostly at the start of World War II, but the Nazis gradually phased them out when they saw their effectiveness being hampered by the psychological impact they had on their soldiers. German soldiers struggled to cope with witnessing and participating in mass shootings, with some soldiers refusing to shoot Jews outright and others turning to alcohol to cope. Those who sufficiently "bought into" Nazi ideologies were better able to carry out these killings compared to their peers.[116] Gassing was considered a more promising tactic, especially because the physical separation between the German soldiers and the gassed victims seemed to make the psychological load on the soldiers easier to bear.[117] In the most well-known death camp, Auschwitz, both Jews and the Roma were subject to death by gassing. Another aspect of the concentration camps and death camps in World War II were the horrific experiments committed upon residents of the camps by Nazi scientists. One prominent Nazi scientist, Josef Mengele, carried out many horrific medical experiments on the residents of Auschwitz, especially the Roma people whom he was uniquely interested

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they were seen as the largest threat to Nazis, the Roma and other groups were also targeted since they, like the Jews, were still seen as a threat to the "Aryan" race.

[113] Epstein, "Nazi Germany," 158; Christopher Browning, "Ordinary Men: Reserve Police Battalion 101 and the Final Solution in Poland," 18-19, 49-50; Other historians argue that the "Final Solution" was decided later during the Wannsee Conference, but this argument is obfuscated by Browning's argument, which has more merit.

[114] Epstein, "Nazi Germany," 159-160.

[115] Epstein, "Nazi Germany," 156-157.

[116] Epstein, "Nazi Germany," 157.

[117] Epstein, "Nazi Germany," 157.

in.[118] Mengele focused his experiments on dwarfs and twins, who were often Roma people or children; he would experiment upon and then kill them, later comparing their dead bodies to one another.[119]

The events of the Holocaust led to the deaths of roughly 5.8 million Jews, with around sixty percent dying by gassing and the other forty percent by other means including shootings, drownings, and starvation.[120] Millions of other non-Jews were also killed throughout the Holocaust, which cannot be overlooked. The actions taken by the Nazi Party throughout their regime, and most prominently in the Holocaust, are a prime example of moral violations. The actions of the Nazi regime caused extreme harm and injustices against pre-existing social norms of morality. Moral principles against things like killing others are often commonly established when living in a society, since permitting murder to become a social norm would inevitably result in social bonds being broken and the society itself becoming obsolete. However, murdering others is precisely what German soldiers felt they had to do under the leadership of Nazis and their orders to kill Jews and other "non-Aryans" during World War II, since Nazi ideology argued these "non-Aryans" had no place in society. Despite having "no place" in society in the eyes of the Nazis, the victims were still nonetheless physically present in the society. This paradox placed German soldiers in moral predicaments where they had to murder "non-Aryans" to follow Nazi ideology. These predicaments contributed to the widely accepted use of alcohol to cope. However, the actions of the Nazi regime constitute moral violations not only because of how they directly affected Nazis, but more importantly because of what the victims of their actions suffered. *Victims of the Holocaust lost everything.* Not only were they stripped of their rights, possessions, and their loved ones, they were denied their own humanity and existence. By racializing their

[118] Epstein, "Nazi Germany," 165.
[119] Epstein, "Nazi Germany," 167.
[120] Epstein, "Nazi Germany," 172.

victims, the Nazis treated Jews as “non-human” others, who did not deserve basic necessities such as food, water, and shelter. Racialization turned into dehumanization when the Nazis identified the “Aryan” race as being the only valid human race. By reducing Jews and other victims to non-humans, Nazis viewed them as lacking dignity, making them more disposable. Jews were “worthy” of being murdered since they existed as a supposed threat to Nazi society. The logic of someone being “worthy” of murder clearly exists in opposition to norms of morality within society. Nazis failed to accept that the Jews and their other victims did physically exist in their society and still deserved to be treated the same as “Aryan” Germans in terms of basic moral norms, such as not being “worthy” of murder.

Paradoxically, Nazis were able to undermine social norms surrounding morality in order to carry out the ideals of their ideology by adopting and adapting pre-existing moral arguments, which allowed them to more easily commit these harms and injustices. By justifying their actions using deontological, consequentialist and virtue ethics arguments, Nazis felt that they were not only avoiding moral violations, but actually following what morality demanded of them. The next three chapters will show just how exactly the Nazis employed the philosophies of Immanuel Kant, Jeremy Bentham, and Aristotle to justify their actions.

# Chapter Three

## The Adoption and Perversion of Kantian Philosophy

"Act as if the maxim of your action were to become through your will a universal law of nature."[1]

*-Immanuel Kant*

Immanuel Kant's moral philosophy started as a reaction against the dominant tradition of ethics of consequentialism, specifically the theory of utilitarianism introduced by Jeremy Bentham, during Kant's life.[2] While consequentialism bases its ethical evaluations on the outcomes of an action, Kant asserted a deontological approach, without any reference to consequences was more appropriate to use in ethical evaluations.[3] Deontology emphasizes the evaluation of the motivations behind an action and whether they follow an established principle. Kant in particular believes that actions must be motivated by duty and respect for moral law in order to be morally appropriate. Actions motivated by other reasons such as the consequences of the act, one's emotions, or self-interest are morally inappropriate to Kant. To understand Kantian philosophy, one must really understand the complexity of the details within his arguments by reading his works on the topic. Kant best articulates the foundations for his moral philosophy in his 1785 book *Groundwork for the Metaphysics of Morals* and his 1788 book *Critique of Practical Reason*. Eventually Kant developed his philosophy further in his 1797 book *Metaphysics of Morals* based upon the foundations of the other books. This trilogy of books completes Kant's theoretical account of moral philosophy. While *Metaphysics of Morals* represents perhaps the most exhaustive account of Kantian

[1] Immanuel Kant, "Groundwork for the Metaphysics of Morals," 30.
[2] For more information about consequentialism, Bentham's utilitarian theory will be expanded upon further in Chapter Four.
[3] Immanuel Kant, "Critique of Practical Reason and Other Writings in Moral Philosophy," 177.

philosophy, enough of his ethical account is presented in his foundational works for an effective analysis of the relationship between Kantian morality and Nazi Germany.

*Groundwork for the Metaphysics of Morals* explains what Kant even means by the "metaphysics of morals" by introducing Kant's method of investigation into the topic of ethics. Kant starts in the preface by accepting the Ancient Greek division of philosophy, "into three sciences: physics, ethics, and logic."[4] Kant determines that logic cannot have any empirical part, while physics and ethics can both have empirical and non-empirical parts. Physics is concerned with the laws of nature while ethics deals with the laws of freedom. Physics is divided empirically and non-empirically between actual physical things in the world and concepts such as time and space. The non-empirical part of physics is referred to by Kant as the metaphysics of nature. The empirical part of ethics is understood as "practical anthropology" because it occurs *a posteriori*, meaning after experiences occur. On the other hand, the non-empirical or rational part of ethics, "must be sought *a priori* solely in the concepts of pure reason" and is best understood as morals.[5] Therefore, in correspondence with his understanding of physics, Kant decides to refer to the nonempirical part of ethics as the metaphysics of morals. Now that his understanding of philosophy as a whole is established as well as the *a priori* nature of morals, Kant can proceed with his investigation into what moral law necessitates of people and allows him to seek out, "the supreme principle of morality".[6]

Kant begins his investigation by analyzing various concepts of morality to try and produce an understanding of the supreme principle of morality. The first concept Kant considers is "good will" which he views as being the only thing that one can possibly think of as being good without qualification. This means that every other thing that people can

[4] Kant, "Groundwork," 1.
[5] Kant, "Groundwork," 2.
[6] Kant, "Groundwork," 5.

consider as being good is only good insofar as it derives its goodness from something else, therefore only being good instrumentally. The good will on the other hand is intrinsically good, or good in itself, rather than being good, "because of what it effects or accomplishes."[7] Kant argues that the capacity of humans to use reason exists with the true function of producing, "a will which is not merely good as a means to further some end, but is good in itself" rather than to produce happiness or self-preservation. Kant argues that wills led by natural inclinations, rather than reason, are better suited to promote one's preservation, welfare, and happiness.[8] Wills that are led by reason are best understood as wills that act from a sense of duty, with duty being the next concept that Kant analyzes. Natural inclinations influence our sentiments, such as sympathy and pleasure, which implies that sentiments lack moral worth as they cannot be performed from the same sense of duty as wills led by reason can. Kant then considers three ways people can interact with duties that they are confronted by. People can act either in blatant contradiction with duty, merely in accordance with duty, or from a sense of duty. Acting in accordance with duty means you follow what duty requires of you but fail to be motivated by duty itself. Acting from duty means that you act with respect for the duties which are assigned to you by moral law. Moral worth therefore is determined by "the principle of volition according to which…the action has been done."[9]

From this point, Kant then realizes he must establish what kind of law can be thought of which determines that the will is able to be intrinsically good. Kant then introduces the concept of universality into his argument, determining that the only principle left that can properly motivate the will is the "universal conformity of its actions to law". Simply put, one must always act in such a way that the principle motivating their action should become a universal law.[10] This essentially encompasses Kant's understanding of his categorical

[7] Kant, "Groundwork," 7.
[8] Kant, "Groundwork," 8.
[9] Kant, "Groundwork," 13.
[10] Kant, "Groundwork," 14.

imperative, which is argued by Kant to be the supreme principle of morality. Kant goes on to provide two more formulations of the categorical imperative, although they all work in tandem to provide the same conception of the supreme principle of morality. The second way of conceptualizing the categorical imperative is his argument that the motivating ground for moral law must have absolute worth.[11] The only thing that Kant determines to have absolute worth are rational beings such as humans because, "rational nature exists as an end in itself" rather than a means to an end.[12] Therefore the categorical imperative commands one to, "act in such a way that you treat humanity, whether in your own person or in the person of another, always at the same time as an end and never simply as a means." In practice, this refers to people always holding respect for the intrinsic value of rational nature and not using people instrumentally to achieve a desired outcome. The last conception of Kant's categorical imperative concerns the concepts of autonomy and the "kingdom of ends."[13] Here, Kant argues that every will of humans is, "a will that legislates universal law in all its maxims," meaning that the categorical imperative is displayed when humans freely use their rationality to determine the universal law and further test their own principles motivating their actions against the universal law they rationally determined. The "kingdom of ends" is thus created when there is a systematic union between different rational beings through common laws that they each autonomously universally legislate. Kant claims that people are members of the kingdom of ends when they are both the creator and the subject of these universal laws.[14]

Now that Kant has established his supreme principle of morality as the categorical imperative, he then turns to argue that the fact of freedom and free will is what explains why there are morally self-legislating rational beings. Kant views freedom as a fact of life universally for all rational beings with wills because reason must regard itself as free. Reason

[11] Kant, "Groundwork," 35.
[12] Kant, "Groundwork," 36.
[13] Kant, "Groundwork," 39.
[14] Kant, "Groundwork," 40.

must consider itself free because, “we cannot possibly think of a reason that consciously lets itself be directed from outside as regards to its judgements; for in that case the subject would ascribe the determination of his faculty of judgement not to his reason, but to an impulse.”[15] Essentially, impulse rather than reason would be the directing force of one's will if reason was not free from outside influence. Now having established the existence of freedom as being presupposed “as a property of the will of rational beings,” Kant then turns to explaining how rational beings are morally self-legislating.[16] Because outside influence cannot provide laws for free will, then the only law that can exist for a free will is that free will itself. Therefore, the only law that is acceptable under Kant’s view is one that is produced by the free will of a rational being and then self-imposed. To follow contingent laws will thus make a rational being unfree.

Having discussed some of the important concepts found in *Groundwork for the Metaphysics of Morals*, it is time to progress onto the additions of *Critique of Practical Reason* on Kantian moral philosophy. This work expands on *Groundwork* by critically examining the concept of pure practical reason with analytic reasoning and dialectic reasoning. Later in the work, Kant discusses how we can make people live and act morally, referred to as moral education. While moral education is a fascinating part of Kant’s account of ethics, it is best to focus on his analysis of pure practical reason as we progress through analyzing the relationship of Kantian philosophy to Nazi Germany.

The *Critique of Practical Reason* restates many of the arguments introduced in *Groundwork* in its analytic section, but one crucial expansion is Kant’s arguments in his dialectic section in relation to the highest good. Kant is careful to remind readers that, “though the highest good may be the entire object of a pure practical reason, i.e., of a pure

[15] Kant, “Groundwork,” 50.
[16] Kant, “Groundwork,” 50.

will, it is still not to be taken as the determining ground of the pure will."[17] The moral law is the only thing that can be the ground for making the highest good and the realization of the pure will. Kant then expands his understanding of the highest good as it relates to God and Christianity. Since the object of pure practical reason is the highest good, we must believe that the highest good is achievable. Kant argues that the highest good may not be achievable in the phenomenal world, but could be in the afterlife, which is posited as existing in the physical world. The existence of God can reward us in the afterlife and thus is crucial to prove the practical possibility of the highest good.[18] In this part of the *Critique of Practical Reason*, Kant presents his belief that, "the doctrine of Christianity, even when not regarded as a religious doctrine, gives at this point a concept of the highest good (the Kingdom of God) which is alone sufficient to the strictest demand of practical reason."[19] This promotion of Christianity by Kant is crucial, as he fails to claim that any other religion fits within the structure of his moral philosophy. Therefore, Christianity is viewed positively by Kant since it grounds its religion in ethics. Kant's use of the term "Kingdom of God" is also in reference to his "kingdom of ends" conception of the categorical imperative as discussed in *Groundwork*.[20] In later works, Kant critiques other faiths for falsely grounding ethics in religion rather than grounding religion in ethics, specifically the kingdom of ends conception of the categorical imperative, like he argues Christianity does. Kant is especially critical of Judaism for appearing too focused on religion and God himself, rather than focusing on the Kingdom of God and conception of heaven that fulfils the kingdom of ends requirements of the categorical imperative.[21] In fact, Kant viewed Judaism not even as constitutive of a religion, but instead as existing as a political entity.[22] Kant was extremely critical of

[17] Kant, "Critique of Practical Reason," 214.
[18] Kant, "Critique of Practical Reason," 229.
[19] Kant, "Critique of Practical Reason," 230-231.
[20] Stephen Palmquist, ""The Kingdom of God is at Hand!" (Did Kant really say that?)," 421-437.
[21] Sidney Axinn, "Kant on Judaism," 9.
[22] Axinn, "Kant on Judaism," 10.

Judaism's concept of a chosen people, as it inherently creates enmity between non-chosen people, thus resulting in political conflict between people rather than the universality of ethics among all.

Having understood that Kant himself viewed Christian morality as working in tandem with his philosophy, it is important to understand that the relationship between Kantian ethics and Judaism is more complex than it appears. Despite Kant's own claims that Judaism works outside of his ethical framework, some Neo-Kantians including Hermann Cohen argue that Judaism works in tandem with Kantian morality more than Kant himself believes. Cohen's main argument in his text *Religion of Reason: Out of the Sources of Judaism* argues that Judaism is a religion of rationality.[23] Rather than having religion come before ethics as Kant claims, Judaism as understood by Cohen in accordance with Kant's ethical philosophy draws its religion from rationality and principles first as seen by the title of his work. To show this to be the case, Cohen's work draws upon various Judaic sources to make his argument. This Neo-Kantian stance complicates the narrative that Christianity is the only religion that works in tandem with Kantian morality, making this a complex subject to analyze. Regardless of this Neo-Kantian assertion that Judaism is in alignment with Kantian philosophy, one cannot disregard the fact that Kant himself argued against this understanding of Judaism. The promotion of Christianity and critiques of Judaism remain a part of Kant's work and thus in some way part of his philosophical legacy.

Having discussed in detail a good chunk of Kantian moral philosophy, it is now time to transition into discussion of the relationship between Kantianism and Nazi Germany, specifically the ideology of Nazism. Before devoted Kantian philosophers rush to the theory's defense, it is important to note that of course Nazism did not fully adhere to the moral codes of Kantian ethics. However, despite failing to adopt Kantian philosophy in its entirety, it

[23] Hermann Cohen, "Religion of Reason: Out of the Sources of Judaism" 43.

cannot be denied that Nazis did adopt some tenets of Kantian philosophy as justification for their actions. A true Kantian would never have accepted the horrific actions of the Nazis, but there is nonetheless an argument to be had that there are roots of Kantian philosophy within the Nazi justifications for their atrocious moral violations against the Jewish people as well as other persecuted groups. Kantian philosophy was both adopted and perverted by the Nazis within their internal justifications for their crimes. The same can be said for Christianity in relation with Nazism; although true Christianity can never justify the actions of the Nazis there are nonetheless aspects of Christianity, such as historical Christian antisemitism, which were used as moral justification for Nazi crimes.

One of the most glaringly apparent ways that Nazis adopted Kantian philosophy was within the concept of duty as discussed by Kant. Nazi Germany was not a society filled with people who completely wanted to eradicate all concepts of morality, instead they believed they were living acceptable moral lives. In fact, commonly accepted moral violations, such as stealing and murder, were seen by Nazis as being moral violations unless they were done to serve a higher moral demand.[24] This "higher moral demand" was often interpreted by Nazis as the Kantian notion of duty as the supreme moral imperative that commanded them to act in such a way against their victims. Nazi ideology promoted the belief of a higher duty of preserving the racial purity of the Aryan race from being overrun with "impure" people: the Jews, the Roma, homosexuals, disabled people, black individuals, political opponents, resistance groups, and many others. The adherence to this higher duty was crucial for followers of Nazism to overcome not only the internal moral barriers of committing moral violations and causing suffering to their victims, but also overcoming the psychological barriers presented by witnessing the suffering of others due to one's own actions.[25] One's emotions towards their victims must be disregarded in the face of the higher duties required

[24] Joshua Halberstam, "From Kant to Auschwitz" 43.
[25] Halberstam, "From Kant to Auschwitz," 43-44.

by moral law; being cold and emotionless was crucial. Proponents of Nazism made this easier as they barraged their followers with endless propaganda that dehumanized their victims, thus making it easier for these same followers to lack sympathy and pity towards those they were harming.[26] Nazis also made alcohol widely available to help make the psychological barriers easier to overcome, as well as alienating and physically distancing the suffering of their victims in concentration camps and gas chambers where the suffering was not as directly observed as it might be in a situation where a Nazi had to kill a victim directly.[27]

The ideology of Nazism presented the Nazi movement as acting not merely in accordance with moral law, but from a sense of duty toward and respect for the moral law. This moral law, which is realized through the categorical imperative within one's universalization of their maxims, is viewed by the Nazism as promoting the Aryan race. This is clearly not what Kantian ideology would agree with, since promoting an Aryan race cannot be universalized insofar as it treats other humans as means to an end rather than ends in themselves. This Nazi argument is a perversion of Kantian philosophy. But Nazism correctly utilized the necessity of acting from a sense of duty captured within Kantian philosophy. The Kantian notion of duty was crucial to allowing Nazis to commit moral violations. Without this adoption of some aspects of Kantian philosophy, the German people would have been less likely to subscribe to Nazism as an ideology and or even feel justified to perpetuate the system of atrocities through their actions. The Nazi ideology would not have been successful, and people would have felt immoral for killing and stealing from others at all. Yet, the sense of duty permitted Nazis to feel not only justified, but moral, in their actions. Importantly, because the Nazis correctly played into the Kantian use of duty, it also means they were able to follow the Kantian notion of good will. By believing that they were acting from a sense of

[26] Halberstam, "From Kant to Auschwitz," 44.
[27] Halberstam, "From Kant to Auschwitz," 44.

duty as Kant requires, Nazis believed they were correctly using reason to produce the good will, understood as intrinsic goodness.

In addition to following the concepts of duty and the good will, Nazis legitimately tried to follow the Kantian demand of being free moral self-legislators who tested their maxims by attempting to turn them into universal laws using rationality. They used their reason and rationality, strictly taking emotion and sentiment out of the equation, to test their morality and determine what has moral worth as Kant would support.[28] Although they perverted the test of universalization within the categorical imperative described by Kant, the methodology they used was, in a certain sense that I am trying to unpack here, Kantian in nature. Nazis still attempted to follow the Kantian framework for individuals seeking to determine if they are acting morally as free self-legislating people. By taking sentimentality out of the equation, as Kant did, and relying only on a priori rationality and reason, the murder of millions was easily justified, and even celebrated, by subscribers of Nazi ideology.

Although the Nazis clearly adopted some aspects of Kantian ideology, it is still important to mention perhaps the most damaging perversion of Kantian ideology. As mentioned before, the Nazis did not correctly follow the categorical imperative, the supreme principle of Kantian morality, although they correctly implemented other aspects of Kant's philosophy. But, by perverting this crucial aspect of the philosophy, Nazis were able to justify the most horrendous crimes. The Nazis perverted the categorical imperative in many ways. For example, Nazis incorrectly used the concept of universalization introduced by Kant to argue for the elimination of others in order to protect the purity of the so-called "Aryan" race.[29] However, the most damaging perversion of the categorical imperative occurred within the argument presented by the Nazis that the people whom they were targeting were not even

[28] Halberstam, "From Kant to Auschwitz," 43, 50.
[29] Halberstam, "From Kant to Auschwitz," 43.

constitutive of rational beings deserving of the same treatment as themselves under Kantian ethics.

Kant's categorical imperative is clear that one ought never to treat another rational being as a mere means to an end, as doing so would be a moral violation against their intrinsic worth stemming from their capacity for rationality. Yet the Nazis painted their victims, primarily the Jewish people, as "subhuman" in their propaganda, dehumanizing them away from the identity of being a rational being.[30] Nazi leadership barraged their citizens with antisemitic pieces of media, such as films like *Jud Süss* and *Der ewige Jud*, which portrays Jews as evil and threatening to the safety of the German people.[31] By portraying the Jewish people as subhuman, evil, and as a threat, it is little wonder why Germans were ready to forego sympathetic feelings towards Jews. In addition to this lost sympathy, Nazis also viewed their victims as existing outside of the moral domain they operate in. Jewish people, disabled people, Roma people, homosexuals, and many other persecuted groups were not capable of holding intrinsic worth the same way that other Germans did. These people were inherently lacking in moral worth and thus deserved no respect at rational beings. Especially because these victims were viewed as interfering with the Nazi mission of promoting a higher sense of duty and rationality, it was crucial that they be eliminated in the eyes of the Nazis. Of course, this perversion of Kantian moral philosophy precisely since Jewish people and all other marginalized groups were not actually subhuman and therefore remained within the actual framework promoted by Kant. But, the influence of Kant's framework, regardless of its misuse in some respects, remains an important factor as to why Nazis were able to portray their crimes against their victims as being acceptable, and even morally correct, to the German society.

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[30] Halberstam, "From Kant to Auschwitz," 44.
[31] Catherine Epstein, "Nazi Germany: Confronting the Myths," 150.

One final way that Kantian morality was correctly adopted by Nazis occurs in their religious moral arguments against the Jewish people. The strand of Christianity within Kantian philosophy, and the apparent Kantian distaste for Judaism, was adopted by the Nazis as justification for their moral violations against the Jewish people. This argument remains complicated by the claims of Hermann Cohen and Neo-Kantianism that Kantian morality is compatible with Judaism, yet their claims cannot trump the arguments against Judaism made by Kant himself. The Nazis, like Kant, were ardent supporters of the antisemitic arguments made by Christians, claiming that Jews were to blame for Christ's martyrdom.[32] Christians long subjected Jews to pogroms and other hate-crimes for their religious beliefs.[33] However if Jews were to convert to Christianity, they would finally be accepted and treated fairly by antisemitic Christians since they were not at odds with the existence of Jews as people, but as religious enemies. This form of antisemitism remained focused on religion until the nineteenth century, when antisemitism became racialized. Broadly speaking, in this cultural shift, antisemitism shifted to the view that Jews were now no longer able to escape their identity as Jews, conversion to Christianity was not enough to be accepted. Religion and their racial composition as people became intertwined. Nazis accepted this new, broadened form of antisemitism which found its origin in Christianity and religious conflict. Additionally, Nazis were able to use Kantian arguments against Judaism, such as the argument that Jews exist in conflict with the heaven-centered kingdom of ends approach to morality by appearing too God-focused, in combination with this new racialized antisemitism to argue that the Jews must be eliminated for good, since not even converting to Christianity would allow them to become moral beings.[34] Merely following Christian principles was not enough, since new antisemitism would not allow them to escape the identity of being Jewish. Because Kant did

[32] Halberstam, "From Kant to Auschwitz," 41.
[33] Epstein, "Nazi Germany," 6.
[34] Epstein, "Nazi Germany," 6.

not even view Judaism as being a true religion, and rather being a political entity, Nazis were able to easily use Kantian philosophy within their propaganda arguments. This resulted in the symbolization of Jews as societally threatening, subhuman political enemies, undeserving of the Kantian respect and dignity given to rational beings within the minds of German people.[35]

Of course, this exists as a perversion of some of the values of Christianity in many ways, but it also shows that Nazis did adopt other arguments made by Christians. A true Christian would not accept the lack of compassion and love of thy neighbor promoted in the Nazi interpretation of Kantian morality. In fact, some Nazis such as SS Chief Henrich Himmler, outright despised many Christian values.[36] Yet, many Christians supported the Nazi party despite these religious beliefs.[37] This is often because of the Nazi antisemitic arguments which appealed to a large percentage of Christians at the time, which had long held their own antisemitic beliefs. Christians easily accepted the Kantian arguments of morality presented by the Nazis, viewing Jews as existing in contradiction to morality for following Jewish faith. This support by Christians helped to facilitate the arguments that allowed for the moral violations committed by the Nazis against the Jewish people.

Perhaps the most infamous case of the relationship of Nazism and Kantian philosophy is displayed in the trial of Adolf Eichmann, a Nazi official, in Jerusalem in 1961. Before discussing how Eichmann adopts Kantian philosophy, either by correctly following or perverting the philosophy, it is important to know who Eichmann is and what exactly occurred that led this trial to take place. Adolf Eichmann was a Nazi official who worked in security services of the Nazi regime. Specifically, Eichmann helped to run the Central Office for Jewish Emigration, which organized the mass expulsion of Jews out of the German

[35] Epstein, "Nazi Germany," 150.
[36] Epstein, "Nazi Germany," 55.
[37] Epstein, "Nazi Germany," 107.

state.[38] However, when Germany changed its policy in late 1941 to carry out the "Final Solution" by permitting the murder of, rather than merely the expulsion, of Jews, Eichmann became complicit in the moral violations carried out against the Jews.[39] In January of 1942, the Wannsee Conference took place to make a plan to carry out the aims of the Final Solution as directed by Adolf Hitler.[40] After this conference, Eichmann's job was adapted to planning the transportation of Jews within Germany's border to various concentration camps built by the Nazi regime. Political theorist Hannah Arendt wrote that Eichmann, "quickly became an expert in "forced evacuation," as he had been an expert in "forced emigration," after this conference.[41] Jewish people were transported within Germany at the coordination of Eichmann to various "extermination centers" where the strong among them completed forced labor and the rest were immediately killed off.[42] Eichmann remained in this role until the Nazi regime began to crumble during World War II, where he joined other Nazi officials attempting to escape justice by fleeing to South America. Eichmann escaped to Argentina, "with the help of the Red Cross *and* the Pontificia Commissione di Assistenza," but was later kidnapped in 1960 and forced to face trial in Jerusalem, Israel in 1961.[43] During Eichmann's trial, he attempted to use the arguments presented in Kantian morality as a defense for his actions in the Nazi regime.

Hannah Arendt describes the details of Eichmann's argument and presents her own argument of what took place in her 1963 work *Eichmann in Jerusalem: A Report on the Banality of Evil*. Specifically, Arendt describes Eichmann's Kantian defense during the trial in the first three pages of Chapter VIII, "Duties of a Law-Abiding Citizen."[44] Eichmann

[38] Epstein, "Nazi Germany," 158.
[39] Epstein, "Nazi Germany," 158.
[40] Hannah Arendt, "Eichmann in Jerusalem: A Report on the Banality of Evil," 112-113.
[41] Arendt, "Eichmann in Jerusalem," 114.
[42] Arendt, "Eichmann in Jerusalem," 114.
[43] Epstein, "Nazi Germany," 215.
[44] Arendt, Eichmann in Jerusalem," 135.

claimed to have done "his *duty*" and, "not only obey[ing] *orders*," but, "also obey[ing] the *law*."[45] The terminology used by Eichmann here already shows his attempt to incorporate Kantian morality into his defense.[46] Eichmann even directly claimed that, "he had lived his whole life according to Kant's moral precepts, and especially according to a Kantian definition of duty."[47] Arendt goes on to show that in some ways, Eichmann completely misinterpreted the arguments made by Kantian philosophy to fit his personal situation. For example, Eichmann incorrectly understood the categorical imperative to believe that one ought to, "act in such a way that the Führer, if he knew your action, would approve it."[48] This meant that Eichmann was to determine how to act based upon the will and laws established by Adolf Hitler. Kant on the other hand would have wanted one to act from their own practical reason, not from another person such as Hitler, to find the laws upon which they should act. However, Arendt crucially claims that although Eichmann perverted Kant's philosophy in some ways, "there is not the slightest doubt that in one respect Eichmann did indeed follow Kant's precepts."[49] The way that Eichmann did correctly follow Kantian philosophy is within his adoption of respect for the law, meaning "a law was a law, there could be no exceptions."[50] The lack of exceptions understood by Eichmann is constitutive of the constantly binding nature of duty within Kant's understanding of morality. Duty does not ever go away, and one must always work to fulfill their duties to act morally in the eyes of Kant. Eichmann's lack of exception also works to prove his adoption of the Kantian rejection of sentimentality in place of rationality.[51] Eichmann was constantly acting against his

[45] Arendt, Eichmann in Jerusalem," 135.
[46] Arendt, "Eichmann in Jerusalem," 135.
[47] Arendt, "Eichmann in Jerusalem," 135-136.
[48] Arendt, "Eichmann in Jerusalem," 136; This quote also gives more support to Ian Kershaw's theory of "working towards the Führer."
[49] Arendt, "Eichmann in Jerusalem," 137.
[50] Arendt, "Eichmann in Jerusalem," 137.
[51] Arendt, "Eichmann in Jerusalem," 137.

inclinations and sentiments to fulfill his duty, even though this duty was wrongly construed to fulfill the will of the Führer rather than the categorical imperative.

Arendt argues here that, at least in some way, Eichmann did adopt a part of Kantian ethics. Although this adoption is not complete and Eichmann undoubtedly perverted a portion of the philosophy, Kantian ethics still played a part in Eichmann's actions of committing evil crimes and morally violating many marginalized groups. Arendt furthers her argument by introducing the concept of the "banality of evil" to describe the Eichmann situation. Arendt describes Eichmann as a rather boring and ordinary person who committed evil acts and moral violations, not because he himself is an evil person, but precisely because he lacked critical thinking and was motivated by his personal success and shallowness. Arendt argues that mere boring ordinariness and the system of bureaucracy that alienated the actions being taken from their harmful results were enough to perpetuate the evil acts seen in Nazi Germany. Eichmann, like many other Nazis, viewed themselves as ordinary, moral people who were merely acting out of duty as they followed orders from Adolf Hitler. Other Nazis like Eichmann lacked the critical thinking skills and education to question if the orders they were following were actually morally appropriate and were instead rather complacent in the system that existed around them.[52] Ordinary German people sought to conform in society, rather than risk becoming an enemy to the totalitarian Nazi regime, which is why they did not question the role they played in perpetuating the moral violations committed by the Nazis.

Arendt's arguments were subject to backlash in many popular and scholarly circles, as they were often interpreted as defending Eichmann and other Nazis who were in a similar position to him. But regardless of this backlash, the idea of the banality of evil remains, in my view, a compelling and important interpretation of the causes of Nazi atrocities. However, the resilience of Arendt's argument about the Eichmann situation does not mean that it is perfect.

[52] Arendt, "Eichmann in Jerusalem," 149.

Some of the most salient critiques of Arendt's arguments are presented by historian Deborah E. Lipstadt in her 2011 book *The Eichmann Trial*. Lipstadt argues that Arendt failed to properly capture Eichmann as an individual including his system of beliefs. While Eichmann may not have started out as an antisemite at the beginning of his career, he increasingly absorbed the ideology as he spent more time surrounded by Nazism.[53]

Eichmann knew that his crimes were harming Jewish people, which Arendt even acknowledges, but she ignores that Eichmann did not feel emotionally harmed in any way by his actions and that he actually hated the Jewish people. Arendt ignores Eichmann's blatant antisemitism and falsely argues that he was not a raging antisemite in her banality of evil argument, instead portraying him as an ordinary guy. In Arendt's view, Eichmann was motivated by the bureaucratic system and his innate lack of education and critical thinking, not an extreme hatred of Jews. However, Lipstadt shows this to be a false claim by Arendt by mentioning that Eichmann himself described in an interview in Argentina, "the joy he had felt at moving Hungarian Jews to their death at an unprecedented clip and his pleasure at having the deaths of millions of Jews on his record."[54] The banality of evil may make sense for other ordinary Germans, but Eichmann was no ordinary German. Few Germans were in control of where Jewish people were sent off to be either murdered or condemned to a life of forced labor and internment. Eichmann was surrounded by other Nazis in leadership positions, such as when he attended the Wannsee conference full of top Nazi officials, which likely heightened his internal antisemitic views and motivated him to work more for the destruction of the Jewish people. Eichmann also may have found his perversion of Kantian morality as working in alignment with the antisemitic views he was increasingly holding, as

[53] Deborah E. Lipstadt, "The Eichmann Trial," 169.
[54] Lipstadt, "The Eichmann Trial," 169.

he like many other Nazis increasingly viewed them as subhuman from the Nazi propaganda that they were near-constantly surrounded by.[55]

Despite the case of Eichmann perhaps not being the best display of the banality of evil, as he was more of a raging antisemite than Arendt acknowledges, the arguments made by Arendt maintain their merit in other situations. Plenty of average Germans who were not deeply devoted to Nazi ideologies made massive contributions to carrying out the moral violations seen in the Nazi regime. For example, Brunhilde Pomsel worked as a stenographer for the Nazi Propaganda Ministry and, unlike Eichmann, just sought to work a job to provide for her family.[56] Because of her own self-interest, Pomsel did not critically think about how her job at the propaganda ministry contributed to the dehumanization of Jews. While the case of Brunhilde Pomsel will be expanded on later in this thesis, it is important to mention here to explain how Arendt's arguments hold up against Lipstadt's critiques.

Not every German developed such a deep antisemitic hatred for Jewish people in the same way that Eichmann did, and likely even less felt so deeply motivated to commit moral violations against Jewish people for their own pleasure. In fact, plenty of Germans actively worked against Nazi antisemitism to resist the social system that led to such moral violations. German resistance groups regularly denounced antisemitism and did their best to improve the situations of Jewish people and other marginalized communities against the dominant Nazi regime. Many resistance groups denied the moral philosophy espoused by Nazi ideology and instead promoted their own moral reasons for resisting the Nazi regime.

One well-known resistance group, the White Rose led by siblings Hans and Sophie Scholl, utilized Kantian morality in their arguments for resisting the Nazi regime. The White Rose was a group of students from a social circle at Munich University that were angered by

[55] Halberstam, "From Kant to Auschwitz," 44.
[56] Christian Krönes et al. *A German Life*. https://avalon.lib.virginia.edu/media_objects/r781wg03d

the Nazi regime's racism, antisemitism, and violence.[57] Hans Scholl wrote six leaflets condemning Nazi crimes and the apathetic nature of German society which were distributed by him and other members of the group around Munich and other areas of Germany.[58] The White Rose was eventually halted when the Scholl siblings were caught distributing the leaflets and arrested by the German State Police (Gestapo), the secret police division of the SS. Eventually the Scholl siblings were sentenced to death but their resistance remained a profoundly influencing force in Germany post-WWII into contemporary times.

How exactly did the White Rose adopt Kantian morality? It starts with their belief in both the Kantian understanding of freedom and duty. The leaflets of the White Rose consistently referred to arguments in favor of freedom and dignity which are reflective of a deontological approach to ethics.[59] In consistency with the Kantian view of duty, the third leaflet distributed by the White Rose argued that it was their moral duty to resist the fascist Nazi regime.[60] Duty was crucial to the White Rose because it motivated them to resist the Nazi regime rather than remaining as complacent apathetic people who allowed an immoral system to continue to morally violate Jews and other marginalized groups. The use of duty within the arguments made by anti-Nazi resistors goes to show that Kantian morality does not always entail moral violations. Instead, Kantian morality maintains its merits as being an acceptable moral basis upon which people can live ethical lives. But even though the tenets of Kantian ethical philosophy can be used in an appropriate manner to resist moral violations, it can also be used to perpetrate them. Kant's ethical philosophy remains flawed and is unable to provide an all-encompassing theory of normative ethics. There will always be situations where the adoption of Kantian morality can perpetuate moral violations, which provides reason to doubt the adoption of Kant's philosophy as the standard ethical framework. While

[57] Epstein, "Nazi Germany," 194.
[58] Epstein, "Nazi Germany," 194.
[59] Volkher Von Lengeling, "The Moral Example of the German Resistance Against the Nazi Regime," 241.
[60] Von Lengeling, "The Moral Example," 242.

the Nazis both adopted and perverted Kantian philosophy, the harms they committed by adopting the tenets of the philosophy remain as a stain on the intellectual legacy understood in Kantian ethics, it provides reason for an alternative to Kantian ethics.

# Chapter Four
## Utilitarianism and Nazi Crimes

"Nature has placed mankind under the governance of two sovereign masters, pain and pleasure."[1]

*-Jeremy Bentham*

Utilitarianism is arguably the most well-revered consequentialist philosophy since its creation by Jeremy Bentham in the late 18th century. While many other philosophers have built upon Bentham's work, this chapter will focus only on the concept of utilitarianism promoted by Bentham. This focus is due to the fact that every other form of utilitarianism can feasibly be argued to be a less "pure" form of utilitarianism that is inconsistent with the core tenets of the original theory produced by Bentham. For example, another theorist famous for his utilitarian ideas, John Stuart Mill, has been argued to be inconsistent with utilitarianism because of his distinction between "higher" pleasures and "lower" pleasures, with the former worth more than the later, a distinction that Bentham avoids making.[2] For example, philosopher Michael J. Sandel argues in his book, *Justice: What's the right thing to do?* that these distinctions between pleasures are in contradiction with the core tenet of utilitarianism that maximizing utility is most important.[3] Sandel claims that Mill's argument relies on a moral idea of human dignity independent of utility.[4] While the details of Sandel's argument against Mill are out of the scope of this thesis, the point remains that Bentham's utilitarianism remains the most consistent theory of utilitarianism, thus making it best suited for analysis of Nazi Germany. The aim of this chapter is to show how the core principles of utilitarianism,

[1] Jeremy Bentham, "An Introduction to the Principles of Morals and Legislation," 6.
[2] Amartya Sen, like Michael J. Sandel, is another philosopher who holds this critique of Mill's utilitarianism; Sen in particular critiques Mill from an angle of economics.
[3] Michael J. Sandel, "Justice: What's the Right Thing to Do?" 24.
[4] Sandel, "Justice," 25.

best described by Bentham, can still lead to horrific moral violations as evidenced by those seen in Nazi Germany.

Bentham lays out his conception of utilitarianism most clearly in his 1789 work *An Introduction to the Principles of Morals and Legislation*. Motivated by a desire to see both social and legal reform, Bentham sought to formulate a theory for which people, individually and collectively through government, could determine the moral rightness of any given action. Specifically, Bentham sought to create prison reform with utilitarianism by taking into account the depravity of crimes committed and penalizing those who committed heinous crimes more harshly than those who committed crimes of lesser depravity.[5] Utilitarianism thus acted as a tool for which moral calculations could be made, with the unit of measurement becoming the base of the theory's name: the principle of utility, utils.

According to Bentham, all humans are inescapably governed in life by two masters: pleasure and pain.[6] Humans are thus hardwired to seek out pleasure and avoid pain whenever possible. "Utility" is defined by Bentham as the tendency of something to produce happiness, pleasure, good or benefit or to prevent pain, evil, mischief or unhappiness.[7] The greater the "util" of something is, the more pleasure it produces and/or the more harm it prevents and vice versa. The principle of utility is thus, "that [which] approves or disapproves of every action," based upon the calculated utility of these actions according to a selected person or group whose interests are the focus of concern.[8] When considering the interests of an entire society, Bentham seeks to create an outcome that produces the highest amount of utils possible for the greatest number of people within that society. In Bentham's own words, "it is the greatest happiness of the greatest number that is the measure of right and wrong," for

[5] Bentham, "An Introduction," 81.
[6] Bentham, "An Introduction," 6.
[7] Bentham, "An Introduction," 7.
[8] Bentham, "An Introduction," 7.

Bentham.[9] This hedonistic calculus should therefore guide society into what laws and social reforms should be made. Policies should be designed with the calculation of utils in mind, with the outcome that produces the greatest utils being the policy that is ultimately implemented in society.

Regarding the hedonistic calculus, Bentham clarifies in Chapter IV that this calculus takes into account the intensity, duration, level of certainty/uncertainty, level of nearness/remoteness, fecundity, purity, and extent of the pleasure and pains considered to determine overall value of an action.[10] *Fecundity* is used by Bentham to refer to the chance that the action's outcome will result in even more sensations of the same kind, i.e. an outcome of pleasure producing more pleasure. On the other hand, *purity* refers to the chance of an outcome not resulting in sensations of a different kind, i.e. pleasure being followed by pain. *Extent* refers to the number of people who will be affected. Bentham also mentions that punishment for violation of laws and policies should be directly proportional to the amount of pain or harm that the crime committed. Petty crimes should have a lower amount of punishment doled out for those who commit them compared to heinous crimes. For example, the starving person who stole a piece of bread from a rich man should be punished less severely by the law than some other starving person who murdered the same rich man for his bread.[11] This variance in punishment is because the act of murder is calculated to produce more pain and suffering, a lower amount of utils than stealing does.

Importantly, Bentham's utilitarianism is understood as a form of "act utilitarianism," in contrast with "rule utilitarianism," because of the method in which it judges actions; act utilitarianism theories like Bentham's focus on the direct consequences of each action taken. The alternative to act utilitarianism, rule utilitarianism, evaluates actions based on whether or

[9] Jeremy Bentham, "A Fragment on Government," 1.
[10] Bentham, "An Introduction," 22.
[11] Bentham, "An Introduction," 81.

not they follow pre-set rules that are generally understood to lead to the greatest good. Bentham does not concern himself with creating rules based on his hedonistic calculus and instead wants the calculus to be performed for every individual action. The moral value of an action in the eyes of Bentham is not dependent on if that action complies with any moral rule.

Having summarized the main points of Bentham's utilitarianism, it is evidently one of the most simplistic and easily understandable moral philosophies, especially in comparison to Immanual Kant's theory. However, this simplicity which makes utilitarianism so easily understandable is also what leads to the theory's main problems.[12] A common critique of utilitarianism is that it allows for the minority rights to be violated on a consistent basis. Because utilitarianism always seeks to create an outcome with the greatest overall happiness for the greatest number of people, a utilitarian can easily justify sacrificing the rights, and perhaps even the lives of a minority group so long as the outcome creates the greatest good for the greatest number of people. For example, if a utopian society for most people in the world could be created so long as a small group of people were subjected to extreme and enduring torture, a utilitarian would be forced to accept the torture of these people because of the large amount of good that is produced. Because all people are weighed equally and no singular person is worth more than another, the hedonistic calculus must accept that, while the situation is not ideal, it is permissible. Situations where more good can be produced at the expense of the rights and lives of any minority population risks an extreme amount of pain and suffering being justified for a supposed "greater good" outcome. Philosopher John Rawls discusses this critique in his book *A Theory of Justice*, as he mentions how, "if men take a certain pleasure in discriminating against one another, in subjecting others to a lesser liberty as a means of enhancing their self-respect, then the satisfaction of these desires must be weighed in our deliberations according to their intensity, or whatever, along with other

[12] The term "utilitarianism" from here on out will only be used in reference to Jeremy Bentham's utilitarianism, rather than any other form of utilitarianism promoted by other philosophers

desires."[13] Because high amounts of pleasure could be derived from the pain of others, the utilitarian hedonistic calculus must include the intensity of this pleasure in its calculation.

Another critique of utilitarianism is that it ignores the distribution of the pain and pleasures that it accounts for within the hedonistic calculus. Primarily, pleasure could be concentrated within the arms of the majority of people. For example, if an outcome produced the greatest good for the greatest number, even if that good was primarily held only by people in the majority population, it would be justified. There is a risk of tyranny of the majority, where those in the majority hoard the pleasure for themselves. The problem lies in the fact that the minority group, even if they were a relatively larger minority, because they were still not in the majority, risk being in a situation where they are deprived of all the goods that could be produced. Like the minority rights critique, this could lead to a situation where minorities are treated poorly and taken advantage of for the lives of the majority to be abundant with pleasure and happiness. Utilitarianism could justify a slave society, where the minority slaves are deprived of the fruits of their labor that are possessed and enjoyed by the majority slave-owners. Philosopher Bernard Rosen discusses how utilitarianism can potentially justify this slave society in his 1978 book *Strategies of Ethics*. Rosen asks the reader to consider a society with 10 people in which there are 100 units of value, V, available to be distributed equally amongst the 10 people. Then, he proposes another society that again has 10 people and 100 Vs available but distributes them unequally. Finally, he proposes a society that has 10 people but has 101 Vs available to be distributed. The three different societies and their respective distributions can be conceptualized by the chart shown below:[14]

[13] John Rawls, "A Theory of Justice," 27.
[14] Bernard Rosen, "Strategies of Ethics," 101.

| Society 1 | Society 2 | Society 3 |
|---|---|---|
| 10 | 15 | 15 |
| 10 | 15 | 15 |
| 10 | 15 | 15 |
| 10 | 15 | 15 |
| 10 | 15 | 15 |
| 10 | 5 | 5 |
| 10 | 5 | 5 |
| 10 | 5 | 5 |
| 10 | 5 | 5 |
| 10 | 5 | 6 |

Rosen discusses how using utilitarian logic, society 3 is the optimal choice because it produces the greatest good amount possible of 101 Vs, while society 1 and 2 only have 100 Vs. Even if society 3 was a slave society that produces an extra 1 V, utilitarian logic forces society 3 to be viewed as the most optimal outcome compared to a free society because it creates the greatest amount of good. Utilitarians must view society 3 as the optimal outcome, but their hedonistic calculus also views society 1 and society 2 as equal in worthiness. The distribution of goods in society 1 and 2 are irrelevant because they both end up producing the same amount of Vs in the end. Rosen explains that this can be problematic because, "if society 2 turns out to be a slave society, that, according to a utilitarian, is irrelevant," when it obviously should not be irrelevant due to the clear societal problems associated with the inequalities of slavery.[15]

Utilitarianism also has an inherent problem as it recognizes only the intrinsic value of pleasure and therefore ignores other important moral virtues, such as justice. While a range of

[15] Rosen, "Strategies of Ethics," 103.

other topics that are also arguably important moral virtues are also lacking in value within utilitarianism, such as freedom, human dignity, etc., justice is perhaps the most important of them all. John Rawls explains that justice is a concept that all men hold in common despite their disagreements over which principles should define their societal association.[16] Justice, along with truth, therefore is one of the "first virtues of human activities," that cannot be overridden by some idea of the greater good.[17] Therefore, justice can also be viewed to hold intrinsic value as well, which utilitarian theory ignores. Rawls explains that each person, based on justice, possesses an "inviolability" that even the welfare of an entire society cannot override.[18] By ignoring this important virtue of justice, utilitarianism has the potential to promote unjust outcomes in the name of creating more utility in the world.

While each of these prior critiques talk about the failures of utilitarianism at a broad societal level, it is also important to consider that utilitarianism is often harmful to people at an individual, internal level. Philosopher Bernard Williams argues in *Utilitarianism: For and Against* that utilitarianism is deeply flawed because it requires people to betray their own personal moral values and commitments in the name of prioritizing the good of the whole society.[19] Williams points out that it is insane to demand a man to step aside from his own decisions and instead embrace the decisions made by utilitarian calculus.[20] Forcing one to accept this utilitarian calculus comes at the cost of alienating a person from their own actions and the convictions that guide those actions.[21] This depersonalizing process turns someone into a, "channel" of sorts that compiles everyone's actions and turns them into the utilitarian optimal outcome.[22] This sort of alienation is identified as an attack on one's personal

[16] Rawls, "A Theory of Justice," 5.
[17] Rawls, "A Theory of Justice," 4.
[18] Rawls, "A Theory of Justice," 4.
[19] Williams, Bernard and J. J. C. Smart, "Utilitarianism: For and Against," 95-103.
[20] Williams, "Utilitarianism: For and Against," 101.
[21] Williams, "Utilitarianism: For and Against," 101.
[22] Williams, "Utilitarianism: For and Against," 101.

integrity. For example, Williams gives the example of a chemist named George who is in desperate need of a job to provide for his family and receives an invitation by a friend to work at a chemical and biological warfare factory.[23] Chemical and biological warfare goes against George's internal values due to the harm it causes, so he is inclined to not take the job. But his friend reminds George that even if he does not accept the job, the lab would continue to operate anyways, and he'd be left still unable to provide for his family. A utilitarian would have George accept the job, even though it risks his internal moral compass. Compromising one's internal values is harmful as it would degrade one's internal moral identity and alienate their actions from their core belief systems.

Each of these problems associated with utilitarianism, the violation of minority rights, the failure to consider distribution of pains and pleasures, the complete disregard of justice, and denial of personal integrity were present within Nazism as it utilized utilitarian philosophy to its own political advantage. Nazi ideology utilized the utilitarian hedonistic calculus to its own advantage by promoting outcomes that created the greatest good for "Aryan" Germans at the costs of marginalized communities. One of the most horrific examples of the use of utilitarian ideology to morally violate minorities occurred in the concentration camps, specifically within the gas chambers, set up by Hitler and the National Socialist German Workers' Party. Once elected Chancellor of Germany, Adolf Hitler used the resources of the government and NSDAP to create an ultra-powerful military organization to enact his dream of the perfect German society. Under the direction of Hitler, Heinrich Himmler merged the paramilitary party institution of the *Schutzstaffel* (SS) with the government's traditional police bodies.[24] The SS carried out Nazi policies of "racial hygiene", which claimed that minority groups such as Jewish people and disabled people

[23] Williams, "Utilitarianism: For and Against," 85.
[24] Epstein, "Nazi Germany," 55.

compromised the racial health of Germany.[25] Using this racial hygiene ideology, Nazi "euthanasia," which have established as actually being euphemism for murder, produced an outcome aligned with utilitarian principles in the eyes of the Nazis.[26] To create the society with the greatest good for the greatest number, minority groups, such as disabled people, must be killed off. This was all a part of the Nazi hedonistic calculus.

Regarding the problems of distribution of pain and pleasure, it is rather apparent to the untrained eye that pleasures were concentrated in the hands of pure "Aryan" Germans, while pains were placed in the hands of minorities. Nazis increasingly removed luxuries from the lives of Jewish people until they were left for dead. For example, in 1933 Nazis started by imposing measures that barred Jewish people from accessing certain facilities, such as sports facilities.[27] These societal inequalities grew in intensity as Jewish customs, such as the use of names with Jewish origin, began to be forbidden as well. Statues of Jewish people were torn down, and Nazis pressured Jewish people to sell their businesses to people of Aryan descent. Eventually, with the passage of the Nuremberg laws in 1935, Jewish people were stripped of their citizenship. Many Jews were forced to add "Israel" or "Sarah" to their names to indicate their Jewish heritage if their original name did not already indicate so.[28] Eventually, all of this culminated into the night of *Kristallnacht* on November 9-10th, 1938, where Nazis and other Germans rampaged against Jewish people by destroying their homes, synagogues, organizations, and businesses.[29] Many Jews were raped, seized and thrown into concentration camps or killed. Pain in society was distributed more extremely on the side of minorities, such as Jewish people, as they lacked the power to protect themselves from the majority Nazi society that surrounded them. This experience constitutes what many academics such as

[25] Epstein, "Nazi Germany," 152.
[26] Epstein, "Nazi Germany," 153.
[27] Epstein, "Nazi Germany," 84.
[28] Epstein, "Nazi Germany," 85.
[29] Epstein, "Nazi Germany," 85.

Zygmunt Bauman and Marion Kaplan call "social death", where Jews were relegated to a permanent state of dishonor. They were denied their humanity and treated as if they were deserving of their death.[30] The pains that are accompanied with such denial of humanity were never distributed to those outside of minority circles. As Rosen points out, utilitarian calculus simply called for the outcome with the greatest good for the greatest number, like society 3 produced in his example. According to Nazi calculus, the most good could be created by distributing pains and pleasures in this way, even if it required pain to be disproportionately faced by minority populations like the Jews.

Unlike utilitarianism, Nazi society did incorporate other values beyond that of pleasure. Specifically, these understandings of justice were often used to justify Nazi actions against Jewish people whose existence was deemed to be criminal against the greater good of society. However, notions of justice were clearly perverted by the Nazis, untrue to what proper justice would demand, in the name of creating the perfect "Aryan" society idealized by Hitler and his Nazi devotees. Nazis accomplished this by altering the judicial system they inherited from the Weimar Republic. Instead of focusing on the protection of individual rights as the Weimar law did, Nazis directed their judges to follow their own intuition as to what would be the best outcome for the German people.[31] The Nazi's implemented their own new courts aimed at tackling those who committed political crimes, including the infamous "People's Court" made up of only two trained judges and three Nazi officials that presided over crimes of high treason.[32] The People's Court was a known "kangaroo court" that attempted to portray themselves as upholding justice, but in truth disregarded principles of justice, such as due process and fairness, in the aims of creating outcomes that favored their

[30] Epstein, "Nazi Germany," 85; Zygmunt Bauman, "Modernity and the Holocaust," 76.
[31] Epstein, "Nazi Germany," 59.
[32] Epstein, "Nazi Germany," 59.

political aims and Nazi ideologies. Under the guise of an ethic of justice, the true Nazi utilitarian ethic of the greatest good for the greatest number was brought to life.

One of the most prominent historical examples of utilitarianism attacking individuals' personal integrity within Nazi Germany is seen in Reserve Police Battalion 101. Historian Christopher Browning took a deep look into the men who made up the battalion in his book *Ordinary Men: Reserve Police Battalion 101 and the Final Solution in Poland*. Led under the leadership of the SS, Reserve Police Battalion 101 was formed in the city of Hamburg to carry out the expulsion of Poles, especially Polish Jews. Led by Major Wilhelm Trapp, Reserve Police Battalion 101 was given its first ever orders to round up the Jews in the town of Józefów into a marketplace and then deport them to a concentration camp.[33] Anyone who resisted, attempted to hide, or tried to escape was to be shot on site. Infants and those who were too weak or frail to walk to the marketplace were also to be killed on the spot.[34] Major Trapp was so emotionally distraught by these orders, that he gave individual men in his battalion the chance to excuse themselves from having to carry out the orders themselves. However, he still believed that "orders are orders" and still chose to have the battalion proceed with carrying out the round-up and murders in Józefów.[35] Only 12 men of the roughly 500 total in the Battalion had chosen to accept Trapp's offer.[36] After the events of Józefów, the men in the Battalion never received another opportunity to step out as they fulfilled later orders.[37] While carrying out similar orders in the town of Łomazy, battalion members experienced a sort of psychological relief because they were freed from the burden of choice that they had held in Józefów.[38]

[33] Christopher Browning, "Ordinary Men: Reserve Police Battalion 101 and the Final Solution in Poland," 57.
[34] Browning, "Ordinary Men," 57.
[35] Browning, "Ordinary Men," 58.
[36] Browning, "Ordinary Men," 61,71.
[37] Browning, "Ordinary Men," 86.
[38] Browning, "Ordinary Men," 86.

Considering this history of Reserve Battalion 101, it is evident that members were forced to compromise their own internal moral compass against killing innocent infants, sick and elderly people, or resistors. Major Trapp struggled to come to terms with this, still holding onto his personal moral compass by attempting to give an out to those who did not want to commit such horrific actions in Józefów. However, he ultimately did have to sacrifice his moral compass and personal integrity by still requiring the Battalion as a whole, rather than as individuals, to carry out orders in Józefów. This personal integrity was only further degraded as Major Trapp and Reserve Battalion 101 became desensitized to the actions, no longer feeling as emotionally compelled to give individuals the same "out" they once had. As previously mentioned, many members also turned to alcohol as a means of numbing themselves emotionally to their actions.[39] Those who stepped out were often ashamed of doing so because of their appearance of being cowardly or weak.[40] Thus, the battalion was shaped to deny their own personal integrity in the name of following orders, which were designed to fulfill the demands of the Nazis' utilitarian hedonistic calculus. Browning himself notes that these men did not even seem conscious that their internal feelings about their actions did not align with the demands of the regime that they served.[41]

Having discussed how each of these problems of utilitarianism were present within Nazi justifications for their moral violations against their victims, it is crucial to discuss how other aspects of Nazi ideology fit into the logic of utilitarianism. Mainly, the embracement of Social Darwinism within Nazi ideology fits within the ethical frameworks of utilitarianism. Social Darwinism was a theory adopted by Hitler and other NSDAP members that utilized the writings of Charles Darwin and applied them to politics, sociology, and economics. In Social Darwinism, ideas of natural selection and survival of the fittest, where stronger genes

[39] Browning, "Ordinary Men," 83.
[40] Browning, "Ordinary Men," 72.
[41] Browning, "Ordinary Men," 74.

achieve reproductive success over generations and weaker genes are selectively bred out, were applied to human beings in society. Mainly, Social Darwinists believe that "stronger" individuals should see their social and political power, along with their wealth increase over time due to their position as a member of the stronger race. Nazis adopted this in their idea of the "Aryan" German race being the more fit race, with those who were "non-Aryan" deemed inferior in one way or another. Philosopher Allen Buchanan points out that Social Darwinism, "has affinities with utilitarianism so far as it emphasizes the insignificance of the individual and the importance of the species or race."[42] The greater good for the race leads to individual rights of minorities being ignored. Minorities were justified to be killed off in the name of the strongest race being able to become purified and powerful. The greatest good could be produced by creating the most evolutionary fit society even at the cost of individual minorities suffering immense pain and even death.

Despite these intense adoptions of utilitarianism and the associated problems of hedonistic calculus that were present in the Nazi regime, utilitarianism was not solely used to promote Nazism. Resistors of the Nazi regime were also able to utilize utilitarian calculus to make moral arguments against Nazism and the regime's cruel actions. The history of the attempt to assassinate Adolf Hitler on July 20th, 1944, by anti-Nazi resistance groups demonstrates the adoption of some utilitarian arguments. Prior to military officials, such as Claus von Stauffenberg, joining the resistance efforts against Hitler, civil resistance groups maintained pacifist sentiments, believing that murdering a tyrant was unjustified because it was still murder.[43] However, as time went on and military officials joined resistance efforts, they began to justify an assassination attempt against Hitler through utilitarian hedonistic calculus. To non-pacifist military resistors like von Stauffenberg, the greatest good for the greatest number of people could be created if Adolf Hitler were killed. Volkher Von

[42] Allen Buchanan, "Institutions, Beliefs, and Ethics: Eugenics as a Case Study," 25.
[43] Volkher Von Lengeling, "The Moral Example of the German Resistance Against the Nazi Regime," 242.

Lengeling claims, “political and military resistance obviously had the motive to damage or destroy the Nazi regime, and some of these actions had been collective and organized. These motives clearly reflect consequentialist or utilitarian intentions.”[44] Additionally, two military and political leaders of the resistance, General Ludwig Beck and Carl Goerdeler, had written a note in preparation for the assassination attempt of Hitler that called for the reinstatement for the rule of law and the cessation of Jewish persecution. According to Von Lengeling, “Beck’s and Goerdeler’s motives to resist the Nazis reflect a personal utilitarian approach, considering that both had been tipped as political leaders for a post-Hitler Germany.” [45] These resistor’s actions show that utilitarianism is not inherently bad on its own and can in fact be used for positive moral actions. However, we cannot ignore the fact that utilitarianism, like Kantian philosophy, contributed to the moral violations seen within the Holocaust.

[44] Von Lengeling, “The Moral Example,” 242.
[45] Von Lengeling, “The Moral Example,” 241.

# Chapter Five

## What is Virtuous? The Nazi Perspective of Virtue Ethics

"And of this nature [*Eudaimonia*] is mostly thought to be, for this we choose always for its own sake, and never with a view to anything further."[1]

*-Aristotle*

The oldest arguments of moral philosophy find their roots in the realm of virtue ethics. Having been first promoted by Socrates, his disciples worked harder to further develop his understanding of ethics. This was most notably achieved by his student Aristotle within the *Nicomachean Ethics*. Within this work, Aristotle argues that in favor of the development of moral character within one's soul, rather than focusing so heavily on moral actions as consequentialist and deontological theories do.

To start, Aristotle presents the belief that all humans aim for an end that is deemed to be good. The greatest human good then is something that is intrinsically valuable, an end in itself. This means we don't seek this end because it could lead us to some better end, but because this end is valuable for its own sake. Aristotle determines this highest good to be *eudaimonia*, which is best translated as "flourishing" in English. Once you achieve *eudaimonia*, you begin to live the so-called good life. Aristotle argues that to earn *eudaimonia*, one must live a life of purpose and meaning through the cultivation of virtues in oneself rather than merely enjoying the pleasures of life. *Eudaimonia* is not static; it involves dynamically growing your character in positive directions through habituation of actions. This is quite opposed to the ideas of hedonism present in utilitarianism, that care less about fulfillment through development over time and instead focuses on pleasure in one specific moment.

[1] Aristotle, "Nicomachean Ethics," 8.

Aristotle describes virtue as a disposition, or a state, one possesses rather than an capacity one has or a feeling that one experiences. In Book II, Aristotle posits his famous "Doctrine of the Mean"; he claims that virtue exists in a mean state between the extremes of, "excess on one side and of defect on the other."[2] For example in the case of giving and taking wealth, Aristotle claims that the mean state is liberality, rather than giving too little in a state of prodigality or too little in the state of stinginess.[3] Other mean states include courage, temperance (i.e. self-mastery), sincerity (i.e. truthfulness), and many more.[4] In Book V, Aristotle establishes that the most perfect virtue of all is justice, "because it is the practice of perfect virtue," itself.[5] In other words, justice encompasses the everyday practice of displaying virtue. Therefore, cultivating justice in oneself is crucial to achieving *eudaimonia* in one's life.

Another crucial virtue that Aristotle spends a great deal of effort developing is his concept of *phronesis*, translated as prudence or practical wisdom. Practical Wisdom, i.e. prudence is best understood as using reason to understand the good and bad in various situations and being able to know the proper action to perform and virtue to cultivate in that specific moment. It contains aspects of deliberation and judgement of the knowledge one has gained from one's own experiences over time. Additionally, *phronesis* is one of the five intellectual virtues used to achieve the truth, but is unique because of the key role it plays in achieving *eudaimonia*.[6] As Aristotle states, "one cannot be, strictly speaking, good without Practical Wisdom, nor Practically-wise without moral goodness."[7] Having practical wisdom allows one to have good outcomes that lead them closer and closer to achieving the highest good of *eudaimonia* as their life progresses.

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[2] Aristotle, "Nicomachean Ethics," 26-27.
[3] Aristotle, "Nicomachean Ethics," 28.
[4] Aristotle, "Nicomachean Ethics," 28-30.
[5] Aristotle, "Nicomachean Ethics," 78.
[6] Aristotle, "Nicomachean Ethics," 100.
[7] Aristotle, "Nicomachean Ethics," 112.

It is evident then that Aristotle's understanding of ethics is deeply rooted in a conception of progress over time. *Eudaimonia* can only be earned in one's life after they have had time to cultivate their virtues and grow into a more developed person. Applying the same principles to societies, Aristotle's logic shows that groups of people ought to take time to develop their communal virtues and values as the society has time to experience the world with one another and further refine their shared cultural dispositions. As time progresses, the society together will have built a solid foundation and tradition of virtues and values. Future generations can look at this foundation for guidance when they develop virtue in their own selves and share in identity with their generational peers. Aristotle believed that "the proper aim of a society and its institutions is to ensure the virtuousness and eudaimonia of its citizens," by helping to establish traditions of guidance.[8] This way, an entire society can be thought to be growing in virtue alongside the generations of individuals who inhabit it.

However, a problem arises with this Aristotelian ethical logic; What happens when societal virtues are shattered, and individuals are left to pick up the pieces? This problem is exactly what occurred with the events of World War I in Germany. The utter destruction and chaos of the "Great War" completely broke the pre-existing values and virtues as the society suffered extreme economic hardship, political embarrassment, and societal instability and unrest in the war's aftermath. The broken foundation of values eventually resulted in Nazi Germany committing horrific moral violations as they tried to do the impossible task of reinstating the traditional values of pre-World War I Germany.

Between 1863 and 1870, Chancellor Otto von Bismarck, under the leadership of King Wilhelm I, initiated three wars in order to achieve a unified German state led by the Prussian state.[9] Shortly after in 1871, the German Empire, also known as the second Reich, was

[8] Richard M. Ryan and Frank Martela, "Eudaimonia as a way of living: Connecting Aristotle with self-determination theory," 24.
[9] Catherine Epstein, "Nazi Germany: Confronting the Myths," 2.

established under the support of many German liberals, who were willing to sacrifice civic freedoms for the supposed economic benefit that a unified state could provide.[10] During the Second Reich, values of nationalism, scientific racism, antisemitism, militarism, and nihilism were increasingly growing in support. In regard to nationalism, people across the political spectrum came to believe in the idea of the nation as a shared organic entity viewed in a romanticized light, as people deepened their feelings of unity with one another.[11] Scientific racism was also seriously developed by the German population in the German Empire. In the 1850s, racist scholars such as Arthur Comte de Gobineau wrote about a supposed inequality between human races based upon Charles' Darwin's theory of natural selection.[12] In the case of antisemitism, prejudice against Jews by Christians began as a merely religious spat; Christians blamed Jewish people for Christ's martyrdom.[13] However, this form of antisemitism soon grew outside of its religious bounds in the late nineteenth century and started to become racialized. Philosopher Houston Stewart Chamberlain, along with many other racial antisemites, claimed that Jews were a separate and distinguishable race from the pure German race.[14] Values of militarism in the Second Reich were evident within the influential "blood and iron" policies of Otto von Bismarck, which he viewed as necessary for Germany's success.[15] In Bismarck's view, Prussia needed to hold large quantities of armaments since war was sometimes inevitable.[16] Wilhelm II's policy of *Weltpolitik*, translated as "world policy", was also embedded with values of militarism.[17]

All of these values were increasingly growing in power in German society, but as the Second Reich progressed on, people simultaneously grew more nihilistic. German

[10] Epstein, "Nazi Germany," 2.
[11] Epstein, "Nazi Germany," 3-4.
[12] Epstein, "Nazi Germany," 5.
[13] Epstein, "Nazi Germany," 6.
[14] Epstein, "Nazi Germany," 6.
[15] Gerhard Ritter, "The Sword and the Scepter: The Problem of Militarism in Germany," 243.
[16] Ritter, "The Sword and the Scepter," 243.
[17] Epstein, "Nazi Germany," 4.

philosopher Friedrich Nietzsche's 1901 work *The Will to Power* showed a growing trend of nihilism in German society prior to WWI as he argued that values and virtues, especially those promoted by religion, were becoming baseless over time.[18] In respect to religion, Nietzsche famously claimed that, "God is Dead!" when he became disillusioned with the virtues and values promoted by religion.[19] Aspects of modernity, specifically the growing fields of science and philosophy, led people to reject the guidance of traditional values in their moral decisions. People's consciousness became empty as nothing replaced the void left behind from the lost values.[20] As the Second Reich progressed and the belief in these foundational virtues and values became more cracked over time, World War I was the catalyst that finally destroyed the foundation for good.

World War I, also known as the Great War, changed the world in an irreparable way. As Historian Catherine Epstein writes, "Men died like flies – for no meaningful purpose."[21] Soldiers on all fronts were exposed to never-before-seen weaponry and techniques in war: poison gases, mounted machine guns, barbed wire, and trench warfare.[22] Germany's war plan, the Schlieffen plan, was designed to try and prevent a two-front war by fighting and defeating the French first, and then moving on to the East to take on Russia. However, the plan fell apart as Germany was unable to defeat France like they had planned despite the deployment of all the nation's resources for the fight.[23] Morale plummeted to an all-time low in German society as they were forced to accept defeat. Wilhelm II relinquished the throne on November 9, 1918, and two days later an armistice was signed along with the declaration of a new republic. Germans were shocked at this defeat and started to place blame on Jewish

[18] Friedrich Nietzsche, "The Will to Power," 9-11.
[19] Friedrich Nietzsche, "The Gay Science," 181; F. H. Heinemann, "Nihilism in Germany," 81.
[20] Heinemann, "Nihilism in Germany," 81-82.
[21] Epstein, "Nazi Germany," 8.
[22] Epstein, "Nazi Germany," 8.
[23] Epstein, "Nazi Germany," 8-9.

industrialists in the nation with the "stab-in-the-back" myth, which claimed that Jewish and socialist people in Germany unfairly profited off of the war at home while German soldiers fought and died valiantly in the field.[24] Things only got worse as Germany signed the Treaty of Versailles in June of 1919, which forced Germany to relinquish territory and its inhabited population, as well as accepting harsh reparations payments to the Allied powers. Per the Treaty, Germany also had to significantly scale back its army, making it impossible to sufficiently defend itself from the Allied powers that surrounded it.[25]

At this point in time, Germany was at rock bottom, and the tenants of Nietzsche's nihilism were proven true. World War I and its aftermath left Germany with no guidance from traditional values and virtues built up by their predecessors. Weimar Germany, the republic established after World War I, existed as a period of experimentation where German people sought to make sense of the broken world around them through art and culture. Nihilism was depicted strongly by German expressionist artists, who displayed their anguish at the world around them in dark silent work. *The Cabinet of Dr. Caligari* directed by Robert Wiene is one of the best nihilistic representations for this anguish, as the film portrays a dark story of a hypnotized somnambulist, i.e. sleepwalker, committing murders for the insane hypnotist.[26] The colors and plotline are dark and eerie, leaving the audience feeling the same horror that the creators of the film experienced in their own lives in post-World War I Germany. The foundation of virtue laid by pre-World War I Germany was gone; displays of darkness became the people's answer as they tried to understand morality within the uncertain world around them. Nihilism was thriving at the cost of the necessary foundation of virtues needed for individuals to grow towards *eudaimonia*. Nobody, not even the Nazis,

[24] Epstein, "Nazi Germany," 9-11.
[25] Epstein, "Nazi Germany," 11.
[26] Epstein, "Nazi Germany," 17.

could return to the times of pre-World War I Germany before the traditional virtues were ruined no matter how hard they tried.

Hannah Arendt discusses the implications of the loss of traditions in her 1961 book *Between Past and Future*. In her chapter titled, "What is Authority?" Arendt claims that, "with the loss of tradition we have lost the thread which safely guided us through the vast realms of the past."[27] This quote emphasizes that without traditions, specifically traditions of moral virtues and values in the case of post-World War I Germany, there becomes a void of guidance for successive generations of people. This harms the future of Germany because people can no longer exactly replicate the traditions they once held because "[they] are in danger of forgetting," the traditions and losing them into an oblivion.[28] Under this logic, German society post-World War I irretrievably lost some of the virtues their society commonly held into this oblivion that Arendt describes. This is problematic for Aristotelean virtue ethics as this societal foundation of shared virtue was crucial for Germany in achieving *eudaimonia*. Upon losing the traditions, Germans had forgotten what traditions taught them and were left with only the horrific aftermaths of the war to try and achieve *eudaimonia* in their own lives. The sheer horror of World War I made achieving *eudaimonia* impossible, allowing nihilism and dark expressions of shared pain in movies like *The Cabinet of Dr Caligari* to take over German culture.

To escape from this nihilistic darkness, the Nazi's attempted to do the impossible task of returning Germany to its old traditional values and virtues held by the country before the war: militarism, antisemitism, nationalism, scientific racism. Because of the economic and political disaster that Weimar Germany had become under the Treaty of Versailles, "the Nazis pledged to restore German cultural values," in a way that appealed to many

[27] Hannah Arendt, "Between Past and Future," 94.
[28] Arendt, "Between Past and Future," 94.

conservative German individuals.[29] More than one-in-three Germans had voted for Adolf Hitler in free democratic elections, which led the German president Paul von Hindenburg to legally appoint Hitler as the Chancellor of Germany in 1933. The members of Hitler's political party, the NSDAP, shared the same traditional pre-World War I nationalist, antisemitic, racist values as Hitler himself.[30] But having experienced such a disaster of World War I, these values only grew to be more extremist: the Nazis had forgotten the level of intensity of these values. Some of the new extremist Nazi policies included increasing the size of the German military and police institutions, especially that of the Schutzstaffel (SS) in order to swing Germany back towards embracing Bismarck-era militarism.[31] For the first time, Nazis enacted policies, such as the Nuremberg laws, that aligned with their antisemitic and racist beliefs and stripped away citizenship from Jews for the first time because of their lack of German blood.[32] The values of nationalism were extremified as the Nazis strongly promoted the idea of a *volksgemeinschaft*, translated to mean "national community" that was forged on the idea of racial purity and existed as a utopian society that overcame class and other social divisions.[33] While the same values promoted by the Nazis existed in the Bismarck-era, they were not as ingrained in social policies as they were under Nazi leadership.

This concept of *volksgemeinschaft* was viewed almost as the *eudaimonic* life that Germans should strive for in an Aristotelian way. Germans were supposed to embody and cultivate virtues in themselves and others that would lead Nazi Germany toward becoming this ideal, racially pure society. The Nazi Youth Programs, specifically the Hitler Youth (*Hitler-Jugend*) worked to instill Nazi values into German children at their most

[29] United States Holocaust Memorial Museum, "Holocaust Encyclopedia: The Nazi Rise to Power."
[30] Epstein, "Nazi Germany," 26.
[31] Epstein, "Nazi Germany," 55-56.
[32] Epstein, "Nazi Germany," 84.
[33] Epstein, "Nazi Germany," 30.

impressionable age.[34] The Hitler Youth was divided into four main groups: the *Jungvolk* (The Young People) for boys aged ten to fourteen, the *Hitler-Jugend* for boys fourteen to eighteen, the *Jungmädel* (The Young Girls) for girls aged ten to fourteen, and finally the *Bund Deutscher Mädel* (The League of German Girls) for girls fourteen to twenty-one.[35] The National-Socialist Women's League (*Nationalsozialistische Frauenschaft*) also existed as a program for adult women to cultivate and grow Nazi values in common with one another once they aged out of the Hitler Youth Programs. Of course, adult men were expected to join the National-Social German Workers Party and Hitler's military organizations once they came of adult age to continue developing their devotion to Nazi virtues.

For the male Hitler Youth organizations, "virtues such as discipline, obedience, honor, courage, and physical prowess," were key lessons taught to the children.[36] Boys were also taught to have unrelenting patriotism and devotion to Nazi Germany and Hitler as its supreme leader.[37] For the female organizations, women were educated in aspects of domesticity such as, "childcare, nursing, hygiene, nutrition, handicrafts, and fashion."[38] Girls were also instructed to maintain healthy bodies through physical activity in order to prepare themselves for future pregnancies.[39] A key part of the Hitler Youth was that young people ought to be led by other young people, meaning that youth leaders were often only a few years older than those who they were instructing.[40] This offered a sense of fulfillment for those youth leaders, but also often led to many problems as leaders were inexperienced and often abused their positions of power, with "corruption, sadism and sexual promiscuity" being extremely common.[41] Another way that this newfound sense of power got to the heads

[34] Epstein, "Nazi Germany," 73-76.
[35] Epstein, "Nazi Germany," 74.
[36] Epstein, "Nazi Germany," 75.
[37] Epstein, "Nazi Germany," 75.
[38] Epstein, "Nazi Germany," 75.
[39] Epstein, "Nazi Germany," 75.
[40] Epstein, "Nazi Germany," 76.
[41] Epstein, "Nazi Germany," 76.

of Hitler Youth participants was their increased willingness to rebel against their parents who did not support the Nazi regime.[42] This allowed for the authority of German parents to be more easily undermined in favor of the authority of the Nazis. In the same way that parental authority was undermined, so was religious authority. The Hitler Youth programs often held activities on Sundays to prevent children from learning about religious virtues and instead spent that time developing the virtues promoted by the Nazis.[43] Cultivating these Nazi-endorsed virtues of militaristic discipline, obedience, etc. in the upcoming generations was meant to bring about the *eudaimonic* national community that Hitler dreamed of over time.

In addition to the extracurricular programs of the Hitler Youth, the NSDAP overhauled the entire German education system to be more in line with their own ideals. Schools were subject to the Nazi policy of *Gleichshaltung*, translated as coordination, in which all schools were reshaped to look more similar in their structure and curriculum as a reflection of Nazi ideology.[44] In these Nazified schools, more time was dedicated to physical education in the name of cultivating better fit soldiers and mothers.[45] Religious studies were significantly reduced in size, so that Germans would not grow as connected to God as a supreme leader over Hitler.[46] History classes were taught with the past of Germany being glorified as something more heroic and admirable, which aligns with the Nazi's conservative movement to bring back the traditional historical values of pre-WWI Germany idolized by Hitler. Biology classes were rampant with theories of Social Darwinism and racist ideologies; students were taught about, "heredity, blood purity, craniology, and the classification of racial types."[47] Physics and chemistry classes were divided up by gender, as boys were taught skills

[42] Epstein, "Nazi Germany," 76.
[43] Epstein, "Nazi Germany," 76.
[44] Epstein, "Nazi Germany," 76; Importantly while I only mention the policy of *Gleichshaltung* here in an educational context, the Nazi regime also attempted to have this process of coordination done in many different realms of German society, such as in their economy, politics, media, and even cultural organizations.
[45] Epstein, "Nazi Germany," 76.
[46] Epstein, "Nazi Germany," 76.
[47] Epstein, "Nazi Germany," 76-77.

useful for the military and women were taught skills useful for their futures as domestic homemakers.[48] Math classes even contained arguments of racial ideology; assigned math problems were phrased with implications that Jewish people were threats to the German nation and that caring for sick, disabled people was an unnecessary burden and waste of Germany's resources.

The Nazi party, along with revamping existing schools, went on to create their own state-run elite schools to better indoctrinate the youth of Germany with an all-encompassing Nazi-approved education of traditional virtues.[49] A network of state-run high schools designed to train government and army leaders was called the *Nationalpolitische Erziehungsanstalten*, translated as National Political Institutes of Education. Nazi Party members were trained in Adolf Hitler Schools and rising Nazi elite were given extra ideological training in *Odensburgen*, translated as Order Castles.[50] The Nazi party, within these elite institutions, were allowed to maintain total control over the virtues and values being instilled into the future generations of German citizens. This happened even to the dismay of many educators, yet teachers were unable to prevent this intellectual conformity from taking place due to their fear of punishment from resisting the commands of the totalitarian Nazi regime.

Each of these schools aligned with the Aristotelian goal of developing traditional virtues in German people that were developed over years of Germany's history. However, the Nazis went awry as they tried to replicate virtues that were broken beyond repair due to the events of World War I. In trying to cultivate the historical German virtues of nationalism, scientific racism, militarism, antisemitism, etc., the Nazis went too far in the extremist direction. Having lost these traditions in WWI, the Nazis fell into the problem that Arendt's

[48] Epstein, "Nazi Germany," 77.
[49] Epstein, "Nazi Germany," 77.
[50] Epstein, "Nazi Germany," 77.

theory about the loss of tradition points out; they started to forget the scale and intensity of these values under the era of Bismarck. Of course, the Nazis still remembered some parts of these traditional values, but they implemented them more extremely than their predecessors had when led by Bismarck through new extremist programs such as the Hitler Youth and policies such as the Nuremberg laws.

Let us imagine the traditional value system as a mirror. The Nazis erroneously tried to glue together the broken pieces of the Bismarckian value system mirror, pretending that the cracks in the mirror were not present, rather than trying to melt down the broken pieces to form a brand-new value system mirror informed by the events of World War I that was devoid of any cracks. The Nazis failed to admit that gluing the pieces of a broken mirror back together will still fail to create a whole value system, i.e. mirror, devoid of cracks. The original mirror is forever lost because of the sheer horrific damage done to German society by World War I. Yet, it was still possible to use the broken pieces to create a new, entirely whole mirror.

While Virtue Ethics failed the Nazi Society because of its lack of foundation, the ethical system maintains its merit in two primary ways. First, resistors of the Nazi Regime were able to utilize Aristotle's virtue ethics logic in order to fight back against some of the actions taken by the Nazi regime. Secondly, had the Nazis accepted that the old value system was shattered beyond repair and that trying to repeat pre-WWI virtues would be ultimately unsuccessful, the Nazis may have found more success had they tried to rehabilitate, renew, and recreate the old pre-WWI values informed by the new nihilistic world devoid of any grounded values that was created by the events of World War I.

In the case of Nazi resistors, some felt that the harms committed by Hitler and the Nazis were not in alignment with the values of Germany. Resistor and military official Erwin von Witzleben argued in his personal notes that Hitler had broken his oath that he took when

he assumed office to uphold the values of the German fatherland with his actions.[51] Because of this, von Witzleben believed that German soldiers like himself were no longer bound to follow his orders. Importantly, von Witzleben maintained this Aristotelian guided moral argument against the Nazis in his own actions; he was one of a major conspirator in the attempt to assassinate Hitler on July 20, 1944. A co-conspirator of the July 20th plot, General Ludwig Beck shared the same moral argument as von Witzleben against the Nazis.[52] Even highly decorated and enthusiastic Nazis grew disillusioned with the virtues promoted by Hitler and the NSDAP when they witnessed the moral violations and horrendous crimes committed by the Nazis. For example, Axel von dem Bussche was once a deeply devoted Nazi loyalist. However, this devotion switched to resistance once von dem Bussche witnessed a mass execution of people in Poland in 1942. Like other resistors, von dem Bussche could not believe that the values of the German people were being upheld when thousands of innocent civilians were being murdered by Nazi soldiers in the name of creating Hitler's *eudaimonic* national community. Thus, von dem Bussche decided not to fight for Hitler, but to fight against him because of the emotional distress he experienced from witnessing this execution.[53] Plenty of resistors felt a disconnect between Nazi ideology and their personal individual morality, leading them to resist the Nazi regime out of feelings of conviction of their own personal values in contrast to Nazi prescribed values. For example, a resistor who survived the regime named Helene Jacobs was interviewed after WWII and asked about her motivation for resisting the Nazis, in which she claimed it was "[o]ut of the conviction, that this all had to fail."[54]

[51] Volkher Von Lengeling, "The Moral Example of the German Resistance in the Nazi Regime," 241.
[52] Von Lengeling, "The Moral Example," 241.
[53] Von Lengeling, "The Moral Example," 241.
[54] Von Lengeling, "The Moral Example," 242; M. A. Wolfgram, "Rediscovering Narratives of German Resistance: Opposing the Nazi "Terror State"," 215.

Each of these people used their own experiences to develop personal moral convictions by cultivating virtues within themselves that placed them at odds with the virtues promoted by the Nazis. In this way, just as Aristotle had described, the cultivation of virtue within individuals was able to minimize the harm and moral violations that the promotion of Nazi virtues had created within the Third Reich. This proves that the tenets of ancient moral philosophy promoted by Aristotle and his peers provide society with a good way to approach ethics. Adapting this ancient moral philosophy to the modern world, rather than precisely replicating it, could allow us to achieve a better approach to ethics in our modern society. This adaptation is precisely what the theories of phenomenology attempt to do as they utilize tenets of ancient moral philosophy within a world devoid of grounded values. Phenomenology learns from the ethical lessons of Aristotle, rather than Bentham or Kant, as it tries to rectify the mistake made by the Nazis of repeating old values by instead imploring people to renew, instead of repeating, these values within the nihilistic world of modern life.

# Chapter Six

## Phenomenology and the "Other" in Nazi Germany

"It is therefore to *receive* from the Other beyond the capacity of the I, which means exactly: to have the idea of infinity."[1]

*-Emmanuel Levinas*

As discussed in the prior chapter, phenomenology exists as both a modern re-reading of ancient virtue ethics philosophy promoted by Aristotle and a response to nihilism and the loss of value in modern society. Using the Aristotelian logic of cultivating virtue and values, phenomenology attempts to learn from the lessons of virtue ethics and build a new, more experience-focused approach that studies ethics from a first-person, subjective perspective. This phenomenological perspective is often based on a subject's lived experience as they navigate the world around them. Phenomenology exists within the continental tradition of moral philosophy, meaning that it has a more holistic, rather than strictly logical approach, to morality; it synthesizes philosophy with modernity, society, history, and subjective experience. Analytic philosophers, often critique phenomenology and other continental philosophies for, in their eyes, lacking any true argument.[2] However, this assumption by analytic philosophers does not stand up to scrutiny; the work of continental philosophers often contains deductive, inductive, and abductive arguments at around the same frequency of works by analytic philosophers.[3] Despite its academic unpopularity, this chapter will

[1] Emmanuel Levinas, "Totality and Infinity: An Essay on Exteriority," 51.

[2] I have witnessed a professor of analytic philosophy in the Department of Philosophy here at the University of Virginia scoff, dismissing Martin Heidegger when I brought him up in discussion. This could have been for many reasons as Heidegger is undoubtedly a controversial figure. However, it appeared to me that neither Heidegger's arguments nor the continental tradition of ethics were taken seriously by this professor. Importantly, I discussed Heidegger's controversies, mainly his past as a member of the Nazi party later in this chapter, where I maintained that the parts of his ethical arguments adopted by Levinas are worth taking serious academic analysis of despite Heidegger's dark past.

[3] Moti Mizrahi and Mike Dickinson, "The Analytic-Continental Divide in Philosophical Practice: An Empirical Study," 1.

seriously consider what phenomenological arguments, specifically those progressed by philosopher Emmanual Levinas, offer to the field of moral philosophy. Using the work of Levinas, I argue that phenomenology exists as an important alternative of ethics that could potentially have rectified the shortcomings of Kantian ethics, Bentham's utilitarianism, and Aristotle's virtue ethics in Nazi Germany.

Emmanuel Levinas was a Jewish philosopher born in 1905 in Kaunas, Lithuania who later pursued his studies in France, at the University of Strasbourg, and Germany, at the University of Freiberg. When Levinas first went to Germany in 1928, he was able to learn more about the specifics of phenomenology directly from the "father of phenomenology" himself, Edmund Husserl, and his prodigal student, Martin Heidegger. Levinas later returned to France to finish out his doctoral degree and continue his studies, which is where he became increasingly concerned with the philosophies promoted by the Nazi Party in Germany during the 1930s. Around this time, Levinas wrote an article titled *Quelques réflexions sur la philosophie de l'hitlérisme*, translated as "Reflections on the Philosophy of Hitlerism," where he analyzed Nazi philosophies as a, "frighteningly dangerous phenomenon," that needed to be better understood.[4] Levinas' analysis of Nazi philosophies and view of their danger would come true when World War II began in 1939 with Germany's invasion of Poland. Levinas enlisted in the French office corps, after becoming naturalized as a French citizen in 1939, to fight against the danger imposed by Nazi Germany. During this time frame, Levinas personally experienced moral violations and horrific violence; he was captured by the Nazis in 1940 and sent to live in a concentration camp designated for military officers and prisoners-of-war (POW) in the town of Fallingbostel, Germany. In this concentration camp, Levinas and other POWs were subjected to forced labor.[5] Fortunately Levinas' wife and

[4] Emmanuel Levinas, "Reflections on Philosophy of Hitlerism," 64.
[5] Peter Steinfels, "Emmanuel Levinas, 90, French Ethical Philosopher"

daughter were able to stay safe in a French monastery during this time period with the help of Levinas' friend from the University of Strasbourg, Maurice Blanchot.[6] The rest of Levinas' family back in Lithuania were not as fortunate; they were murdered by German soldiers during the Holocaust. Being extremely distraught from the loss of his family, Levinas "vowed never to return either to Germany or to Lithuania because of the massacre of his birth family," according to his son Michael.[7] Having directly experienced these moral violations, where his Jewish family was dehumanized and murdered in the name of creating the ideal "Aryan" society and he was treated as subhuman for his own Jewish identity, Levinas was motivated to continue his studies of phenomenological ethics. Levinas further developed his own concept of ethics and was heavily influenced by the moral failures and violations committed to Jewish people like himself by the Nazi Germany.

In his 1961 work *Totality and Infinity*, Levinas places together his ethical philosophy into one all-encompassing text. Levinas draws on what he learned in Germany from Martin Heidegger and Edmund Husserl to create his philosophy of ethics. Learning from Husserl, Levinas reiterated the phenomenological methodology of lived experience and embodiment, where one comes to have a first-person perspective on the world around them, in his own philosophy. However, rather than focusing so much on studying consciousness as Husserl does within his eidetic phenomenological approach, Levinas followed Heidegger's broader intellectual footsteps. Levinas utilized Heideggerian ontology, i.e. the understanding and interpretation of "being" in the world around you within his ethical philosophy. This ontology is where phenomenology finds its roots in ancient moral philosophy, especially Aristotle's virtue ethics. Martin Heidegger was deeply influenced by the knowledge produced by ancient philosophers such as Aristotle, Plato, and Socrates. Specifically Heidegger insisted that, "for

[6] Halya Talkin, "No Heir Apparent"
[7] Robert Manning, "Emmanuel Levinas, Fr. William Richardson, and the Return of the Irresponsible Subject," 4.

the Greeks and Aristotle in particular, Being, as the subject matter of this philosophical or critical scientific thinking, is confronted as what does not lie there [*was nicht vorliegt*] for natural experience, but is rather hidden [*verborgen*], what never lies before and is nevertheless already and indeed always understood [*nie vorliegt und doch schon und zwar immer verstanden*]."[8] Heidegger, like the ancient Greeks, understood "Being" as something initially unknown, but yet still experienced in its non-presence. Heidegger explains it best in an analogy to when we say "the trees 'are' in bloom": we understand the word 'are' but find it hard to explain what 'are' means, i.e. what "Being" signifies as a concept.[9] This understanding of "being" is central to understanding virtue in Heidegger's mind. Once "Being" comes to awareness through *Da-sein*, i.e. human existence, we gain knowledge. Heidegger believes that "virtue is knowledge" and allows for our action to avoid being committed blindly.[10] In this way, Heidegger attempts to bring about a new understanding of Aristotle's virtue, now led by being and experience. Levinas uses this Heideggerian concept of Being, along with the concepts of Dasein and virtue, and builds upon it in his own phenomenological philosophy and arguments against the Nazis.

Before proceeding into the depths of Levinas' philosophy and how he differentiates himself from his phenomenological predecessors, it is important to acknowledge that Martin Heidegger was a member of the Nazi party. There is no doubt that Heidegger was antisemitic, racist, and an overall morally flawed individual. This often gives people reason to doubt if Heidegger's philosophies are even worthy of consideration since they may be tainted by his Nazi ties. Critics may question: how can the Heideggerian strand of phenomenology built upon by Levinas be used to prevent the same moral violations that Heidegger himself was a part of committing? My answer to this question is clear: Heidegger's theoretical contributions

[8] Martin Heidegger, "Basic Concepts of Ancient Philosophy," 6; Sean D. Kirkland, "Heidegger and the destruction of Aristotle," 62.
[9] Heidegger, "Basic Concepts," 6-7.
[10] Heidegger, "Basic Concepts," 74.

remain worthy of academic consideration despite Heidegger's Nazi affiliation because his work was not entirely contaminated by Nazi ideologies. Of course, Heidegger being a Nazi contaminated some parts of his literature, as his *Black Notebooks*, show his belief in creating a utopian "German" society and his faith in National Socialism as a movement with good potential.[11] According to French philosopher Emmanual Faye, Heidegger writes of Jews as not just as lacking a homeland, but lacking a place in the world overall, destroying their humanity.[12] This literary contribution of his is no doubt in alignment with Nazi ideology. However, the concept of "Being" he developed from Aristotle remains valuable so long as it can be re-read itself by other philosophers and understood independently outside of Nazi ideology and antisemitism. I argue that Heidegger's philosophical contributions can, in a sense, be untangled from Nazi ideology as separate parts, rather than permanently wound up within Nazi ideology. This is the case so long as Heidegger's work is further developed by philosophers like Levinas and Jacques Derrida. Levinas and Derrida, who are adamantly opposed to Nazism, were able to identify what parts of Heidegger's intellectualism maintain their merits and which parts must be tossed aside due to their Nazi contamination.

There is also reason to doubt Heidegger's personal ideological commitment to Nazism as he joined the Nazi Party. Heidegger may have joined the Nazi party not because of commitment to Nazi ideals, but because joining the party made his life living under a totalitarian regime easier. As Jewish political theorist, and Heidegger's student and lover, Hannah Arendt would later discuss, totalitarian regimes like Nazi Germany have, "a means of dominating and terrorizing human beings from within."[13] Heidegger, living as an individual within the totalitarian Nazi regime, likely fell victim to this process of totalitarian domination. Living life as a member of the Nazi party made achieving Heidegger's personal

[11] Martin Heidegger, "Ponderings II-VI: Black Notebooks 1931-1938," 76-77, 84.
[12] Richard Brody, "Why Does it Matter if Heidegger was Anti-Semitic?"; Emmanual Faye, "Interview: The anti-Semitism of the "Black Notebooks", the final point of Heidegger's work?"
[13] Hannah Arendt, "The Origins of Totalitarianism," 325.

goals much easier, as going against the Nazi regime likely would have prevented him from being able to further teach at the University of Freiburg, since resistors of the Nazi regime were often jailed alongside Jewish people.

Levinas himself remained upset at Heidegger for his associations with Nazism upon his death in 1995. Specifically, Levinas' obituary states that he found it difficult to forgive Heidegger for accommodating Nazism in his philosophies.[14] But Levinas' own personal struggles with Heidegger do not detract from his important academic reinterpretation of Heidegger in *Totality and Infinity*. Throughout his academic works, Levinas constantly finds himself in conversation with Heidegger's work; Levinas agrees with certain parts but splits from Heidegger's philosophical thought in others. As previously mentioned, Levinas' theory utilizes the Heideggerian ontology of "Being." While "Being" is primarily discussed in Heideggerian philosophy in the context of an individual's relationship with their own Being, Levinas distinguishes himself from Heidegger as he argues that one's relationship with the "Other" exists prior to any Heideggerian ontology. In other words, Levinas believes that "morality is not a branch of philosophy, but first philosophy," that exists even prior to philosophies of metaphysics, specifically ontology.[15]

Levinas starts his understanding of philosophy with the notion that philosophy starts upon the moment of the face-to-face encounter between one's self, which he calls the "Same", and the "Other". The Other is of course a visible thing that the Same encounters, but it is also unknowable to the Same because of its alterity. The Same can never truly understand the Other, since the Other always exists beyond what the Same can conceptualize of the Other in their mind. Importantly, the Other is forever a mystery beyond one's grasp of comprehension, which is where the idea of infinity exists, since we can never reach a full

[14] Peter Steinfels, "Emmanual Levinas, 90, French Ethical Philosopher"
[15] Levinas, "Totality and Infinity," 304.

understanding of the Other.[16] Yet we are able to see a representation of the Other in the "face". The face exists beyond just the literal face of the Other, but also as a symbolic representation of the Other's expression of itself.[17] The face is the Other's living presence.[18] In the face, the Other is able to express its demand for ethical responsibility from the Same insofar as it teaches the Same about itself. Levinas states that, "[the Other]'s alterity is manifested in a mastery that does not conquer, but teaches," which forces the Same to recognize the Other.[19]

In forcing the Same to learn about the Other, the face is the home of ethical responsibility. In the face-to-face encounter, the Same is forced to now live in the meaningful world that the Other has now introduced them to.[20] The Same is not free to ignore what it has learned from the Other and, "is not free to refuse this responsibility itself" although it is free to assume this responsibility in whatever way it likes.[21] For example, if one were to encounter a homeless person when walking down the street, they may choose to keep walking and ignore them, or to engage with them. However, they are not free to ignore the fact that this homeless person is there on the street in front of them and they must make the choice of either ignoring or engaging. In this way, the Other infinitely forces the Same to recognize their unique existence and demands them to perform an action, making them responsible for the Other in that action. As Levinas sufficiently summarizes, "The Other who dominates me in his transcendence is thus the stranger, the widow, and the orphan, to whom I am obligated."[22]

[16] Levinas, "Totality and Infinity," 272.
[17] Levinas, "Totality and Infinity," 51.
[18] Levinas, "Totality and Infinity," 66.
[19] Levinas, "Totality and Infinity," 171.
[20] Levinas, "Totality and Infinity," 218-219.
[21] Levinas, "Totality and Infinity," 219.
[22] Levinas, "Totality and Infinity," 215.

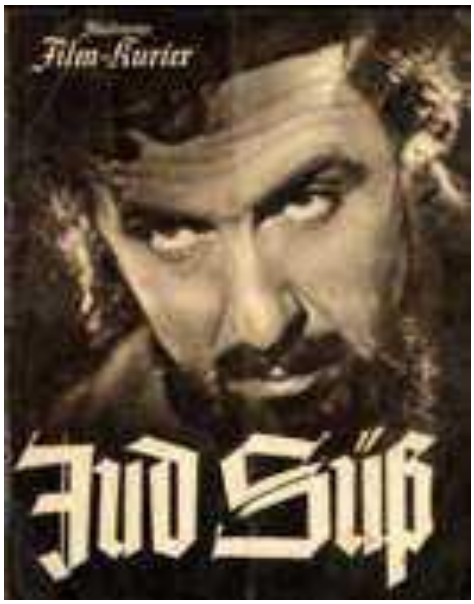
The Same, i.e. the self, is defined by this interaction with, and responsibility towards, the Other. One can only learn of themselves in so far as they understand themselves in relation to the Other. The Same is not self-contained and cannot become aware of its own existence through self-reflection. Instead, the Same becomes aware of itself as it encounters the Other and realizes that it is forever separated from the Other, unable to possess nor fully understand them. Levinas states that, "subjective existence derives its features from separation," as one is able to become aware of themself insofar as they are unable to comprehend the Other.[23] The unknowing alterity of the Other shapes the Same's identity as a thinker capable of reason and reflection.[24] This relationship with the Other thus precedes reason, defining the Same's ability to reason as inherently oriented towards Others rather than self-contained. Upon welcoming the face, the will of the Same now becomes open to reason.[25] People now understand themselves in an ethical view, placing the responsibility towards the Other to the forefront of their minds because they are only even capable of understanding themselves, let alone the world around them, in relation to the Other.

To Levinas, ethics goes awry in his conception of "totality" that contrasts with the ideas of infinite ethical responsibility and separation of the Same from the Other. Totality occurs when the Same tries through some sort of political ideology or philosophical system to master the Other and make them comprehensible. Totality exists in complete contrast to the unknowability of infinity, as a world where everything is made to be comprehensible. People create moral violations when they aim for a world of totality, ignoring the separation between and infinity of the Other, and wrongly shaping the Other to fit within the Same's worldview. Totalization is the process of trying to create a world entirely understandable to the Same, therefore dominating over what is unknowable and different by trying to shape it into being

[23] Levinas, "Totality and Infinity," 299.
[24] Levinas, "Totality and Infinity," 33.
[25] Levinas, "Totality and Infinity," 219.

the Same. This logically fails since Levinas argues that the Other is intrinsically unknowable, and totalization is fundamentally impossible.[26] Trying to shape them into something knowable and familiar to the Same wrongly mistreats the Other, resulting in an ethical failure and moral violation of the Other. To be ethical according to Levinas, people must avoid temptations to totalize the Other for their own personal sake and instead learn to accept the infinity of the Other and the ethical responsibility of care that follows. Refusing to reduce the Other into something knowable is how the Same can stand in alignment with the demands of morality. This demand of constantly having to recognize the Other's alterity forces the Same to be constantly obliged to the Other. Ethics itself therefore becomes never-ending: *infinite*.

The actions of Hitler and the Nazis place them in clear opposition to Levinas' understanding of what it takes to be ethical. Rather than accepting the unknowable transcendence of their victims, Nazi ideology wrongly reduced the victims of the Holocaust to be understandable within their own Nazi worldview. The totalitarianism of Nazi Germany required that individuals lose, "all that is personal to him or her in order to be submitted to the totality of being without name," in essence fully degrading their humanity.[27] This degradation of their humanity aligns with the ideas promoted by Giorgio Agamben in his work *Homo Sacer*. The sovereign power of the Nazi regime reduced the Jewish people, and other victims, down from *bios* understood as a life lived within the social context with pleasure and contemplation, down to *zoē* , understood as bare life, or merely the fact of being alive but outcast from the social world.[28] Propaganda




[26] Levinas, "Totality and Infinity," 53.
[27] Didier Pollefeyt, "The Violence of Being. The Holocaust in the Philosophy of Emmanuel Levinas," 91.
[28] Giorgio Agamben, "Homo Sacer: Sovereign Power and Bare Life," 9.

of the Nazi Regime included many anti-Jewish sentiments, reducing them down to *zoē*. One major example of this is seen in the popular Nazi film *Jud Süß*, released in 1940 under full support of the Nazi regime. The film told the story of Joseph Süss Oppenheimer, a Jewish man who gains the trust of Karl Alexander, the Duke of Württemberg, eventually becoming his treasurer. The film portrays Süss negatively as he is a character who acts criminally, seen clearly in the dark imagery shown in the film poster.[29] For example, Süss utilizes the Duke's finances for his own gain and also goes so far as to rape a Christian woman at his worst.[30] Here, Süss is agreed upon by the society as being a monster because of his actions, leading to his being a social outcast who lacks the privilege of remaining in society because of his crimes. Süss is reduced from *bios* to *zoē* the moment that society finds him guilty of this crime, he is left as a monstrous form of life that is outcast for good from German society. What do people do to forms of life, monsters, that threaten their society? They kill them. Which is precisely why Süss was hanged after he was deemed guilty. Plenty of other dehumanizing anti-Jewish propaganda was prevalent throughout the Nazi regime, such as propaganda that compared Jewish people to diseases infecting German society. This type of propaganda with antisemitic messages supported the Nazi claim that Jews were inherently lesser-than and thus did not deserve the same protections as other "Aryan" humans.[31]

While the transition from *bios* to *zoē* for Süss was only a part of a fictional anti-Jewish propaganda film, there were plenty of other instances of this transition happening in real life as well. Nazis continued to wrongly totalize their victims, rather than accepting their infinite unknowability, most notably in concentration camps and eugenics programs. The Nazis claimed that German society should not waste its resources in trying to keep those

[29] Calvin University, "German Propaganda Archive: The Jud Süß," photograph
[30] Epstein, "Nazi Germany," 150.
[31] Alexander P. Landry et al. "Dehumanization and Mass Violence: A Study of Mental State Language in Nazi Propaganda (1927–1945)," 3.

"unworthy of life", often referring to Jewish people and those who were disabled, alive since their existence only harms German society.[32] The Nazi T4 program, code-named after its location in Berlin at *Tiergartenstraße 4*, specifically targeted Jewish disabled patients in state hospitals as their first targets to be, "systematically killed," to relieve the burden to society that Nazis wrongly considered them to be.[33] The mere existence of euthanasia programs like the T4 indicate that Nazis were attempting to totalize their victims, namely disabled Jews in the case of T4, to fit their idealized worldview that German society should only consist of healthy people from the "Aryan" race.

Another important aspect of the T4 program that indicates the totalization of Jewish people includes how the murders of the victims were carried out. Mainly, the T4 program first invented gas chambers to solve the problems associated with Nazi killers having to be present the moment that their victims die, such as the mental toll that witnessing and causing such a tragedy may take on the psyche of the killer. Gas chambers also made deaths more efficient, so killers would have less time to think about the deaths that just took place, since deaths were able to take place at such a rapid pace.[34] Most importantly, gas chambers were able to create physical separation and distance between the killer and the victims, since the killer was never in the room when they sent poisonous gas in to contaminate the air of the entire chamber. Having physically separated the two involved parties, the face-to-face interaction key to understanding ethics, the Other, and even the Same, i.e. the Same, was blocked. The face-to-face encounter is blocked, with the killer being able to carry out their murder without even having to put a face to the person whom they are murdering. The death remains faceless, and therefore feelings of ethical responsibility are avoided. The killer is

[32] Epstein, "Nazi Germany," 152.
[33] Epstein, "Nazi Germany," 153.
[34] Epstein, "Nazi Germany," 153.

able to easily process the death, since they don't ever have the crucial interaction where the Other is able to make an ethical demand upon the killer.

The same problems of physical separation were seen within the utilization of ghettoization and concentration camps by the Nazis. Taking Jewish people out of German society and relegating them into specific geographic locations devoid of any German people other than Nazi soldiers also worked to limit the crucial face-to-face interaction. The first major ghetto in Poland, Łódź, prevented the crucial face-to-face encounters by segregating Jewish people from the general Aryan population. Jewish people were not welcome to leave Łódź, trapping them in the city to perform forced labor and controlling them through using food, medicine, and fuel to get them to perform the Nazis' bidding.[35] Ghettos like Łódź were just the first step, a temporary solution, to dehumanize the Jews. However, the plans eventually evolved into carrying out the "Final Solution" of the "Jewish problem", a change in German policy by Hitler. The Final Solution expanded beyond just the expulsion of Jews into ghettos; it called for the murder of all Jews.[36] By murdering Jews, specifically through the use of gas chambers in concentration camps, Nazis would no longer have to risk having as many face-to-face encounters as possible with Jews or any of their other victims. Eventually the Nazis would be able to avoid the ethical responsibility they have towards their victims, so long as they no longer existed on Earth. Extinction was key to totalizing Jewish people and fitting them into the Nazi worldview for good, avoiding the struggle of accepting the infinity of the Jewish Other altogether. T4 euthanasia specialists helped to set up and run concentration camps, such as the death camps at Treblinka, Sobibór, and Bełżec.[37] In those three camps alone, roughly 1.7 million Jews were murdered.[38] Many were killed in gas

[35] Epstein, "Nazi Germany," 154.
[36] Epstein, "Nazi Germany," 158.
[37] Epstein, "Nazi Germany," 161.
[38] Epstein, "Nazi Germany," 161-162.

chambers soon after arriving at the concentration camp if they were deemed unfit for labor.[39] They were forced to undress and remove their valuable possessions from their person.[40] Their naked bodies were then shuffled into the gas chambers, often under the guise that they were about to take a shower, where they then died to the poisonous gases.[41] Jewish laborers were then made to shovel out the dead corpses and burn or bury them.[42] Throughout the whole process of killing in the concentration camps, physical separation and avoidance of face-to-face encounters were key. Even after their deaths, Nazis avoided seeing the faces of their victims as they forced other Jewish people to see and clean up their dead bodies.

Another aspect of denying their ethical responsibilities towards the Jewish Others occurred throughout the entirety of German society, most plainly seen in Hannah Arendt's idea of the "banality of evil" first mentioned in chapter three. As a reminder, the "banality of evil" is a concept introduced by Arendt to describe how ordinary people in Germany were able to carry out the genocide of Jewish people through being complicit in harsh regimes within the bureaucracy.[43] People, acting out of self-interest in wanting to advance their own personal careers, do not deeply think about the consequences of the work they are collectively carrying out on others. Carrying out the Holocaust was banal because it was able to take place through the work of people who did not believe themselves to be killers but instead thought that they were average people just doing their jobs. This is how Arendt describes the case of Adolf Eichmann, although there is reason to doubt this for his case.[44] However, as discussed in Chapter Three, Arendt remains correct that many average Germans were not outright psychopaths, but instead unexceptional people who just thoughtlessly conformed to what the society they lived in demanded of them. In this discussion of the

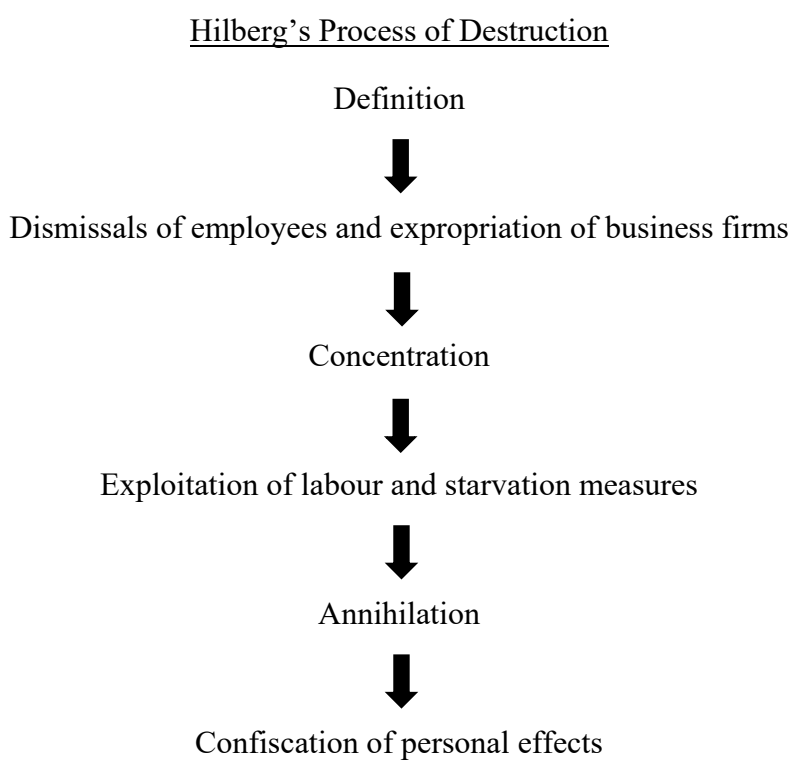
[39] Epstein, "Nazi Germany," 163.
[40] Epstein, "Nazi Germany," 163.
[41] Epstein, "Nazi Germany," 163.
[42] Epstein, "Nazi Germany," 163.
[43] Hannah Arendt, "Eichmann in Jerusalem: A Report on the Banality of Evil," 252.
[44] Arendt, "Eichmann in Jerusalem: A Report on the Banality of Evil," 214-215.

banality of evil, Arendt captures the same problem of physical separation that leads to ethical failures in Levinas' theory. Mainly, ordinary people, because they were not out killing Jews with guns themselves and were instead just doing the bureaucratic tasks needed to carry out the Nazi's Final Solution, felt that they were not ethically responsible for the Holocaust. The physical separation between these average workers and the victims of the Holocaust led many Germans to believe themselves to be innocent.

This phenomenon can be seen clearly in the 2016 film *A German Life*, in which Brunhilde Pomsel, a woman who worked as a stenographer at the Nazi Propaganda Ministry led by Joseph Goebbels, discussed her life under the Nazi regime. In this film, Pomsel not only downplays her role as being responsible in some way for putting out pro-Nazi and antisemitic propaganda, but also in a way victimizes herself as the war was ending. Pomsel states that she really, "[did] feel that [she has] been treated very badly and wrongly by being taken away by the Russians because [she] didn't do anything but type in Goebbels office."[45] Pomsel excellently portrays the banality of evil that Arendt describes, since she felt that she was innocent and did not deserve to be taken away by the Russians for, in her eyes, merely working a job. Pomsel no doubt overlooks the consequences that her work had in contributing to the genocide of millions in Nazi Germany. This made Pomsel, acting in the role of the Same, lack feelings of ethical responsibility towards the Holocaust victims, comparable to the Levinasian Other. The experiences of Pomsel were also likely shared by other average Germans.

[45] Christian Krönes et al., *A German Life,* 1:40:12 to 1:40:25, https://avalon.lib.virginia.edu/media_objects/r781wg03d

The overall process of denying Levinas' ethical theory and lack of moral inhibitions that led to the Holocaust is perhaps best summarized by the process of destruction defined by historian Raul Hilberg shown in the chart below:[46]




Step one, definition, helps to start the Nazi's totalization of their victims by splitting the totality into two parts: the ordinary and the different. The different groups, i.e. those who do not fit into the ideal Nazi *Volksgemeinschaft*, of an entirely healthy "Aryan" society, are thus able to be justified by the Nazis as being "worthy" of facing worse treatment. The next step of dismissal and expropriation of businesses took place clearly in policies like the Law for the Restoration of the Professional Civil Service, which purged Jewish people and political opponents from their government bureaucratic jobs.[47] In this step the, "victimized group is now effectively removed from sight," in a way that prevents Nazi workers from having face to face encounters with the people whom they are victimizing. The victims

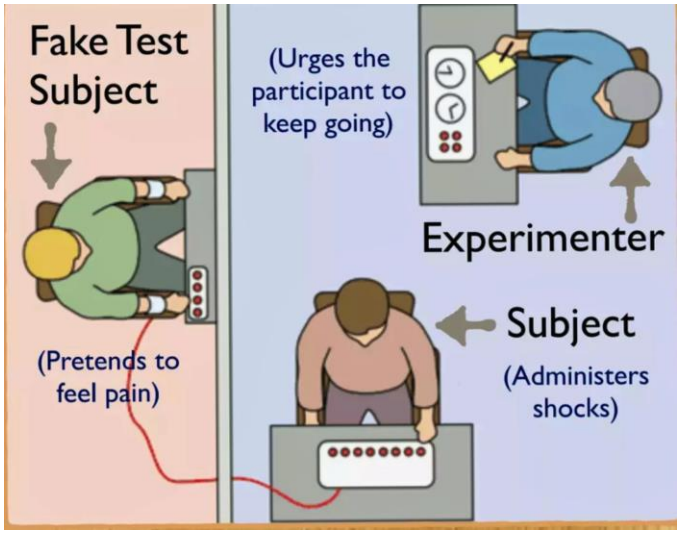
[46] This chart is a recreation of a chart seen in Zygmunt Bauman, "Modernity in the Holocaust," 190.
[47] Epstein, "Nazi Germany," 50.

become people who an ordinary person can only hear of, rather than physically see, leading to there to be, "no chance," that what one hears can be, "checked against personal experience," at all.[48] Experience is removed from the equation, subverting the entire basis of phenomenological ethics. This physical separation from experience is completed in the process of concentration, where segregation is complete and the two groups no longer cross each other.[49] Communication is halted, blocking the crucial process of having the Same learn about and come to accept the infinity of the Other.[50] Exploitation and starvation, leading to annihilation, does the nearly impossible feat of masking inhumanity to appear as humanity. This occurred when Nazis wanted to kill Jews as a way to spare them from the agonizing death of starvation; murdering them was viewed as merciful because it helped victims escape their suffering.[51] Annihilation, the actual death of the victims, thus appeared as the logical outcome of the steps that preceded them, and whatever tangible items left over were thus the Nazis' to claim.[52] Sociologist Zygmunt Bauman notes that each of these steps had one notable part in common: "they all increased the physical and mental distance between the purported victims and the rest of the population."[53] With the increase of distance, responsibility for the other falls apart. Like Arendt, Bauman notices that bureaucratic specialists were increasingly distanced from genocide as their responsibility lied only in representing knowledge of how to do their jobs properly, rather than deciding if their jobs should be done at all.[54]

Bauman rightfully compares this to the Milgram experiment, conducted by psychologist Stanley Milgram in the 1960s. The experiment tested how people respond to

[48] Bauman, "Modernity and the Holocaust," 191.
[49] Bauman, "Modernity and the Holocaust," 191.
[50] Bauman, "Modernity and the Holocaust," 191.
[51] Bauman, "Modernity and the Holocaust," 191.
[52] Bauman, "Modernity and the Holocaust," 192.
[53] Bauman, "Modernity and the Holocaust," 192.
[54] Bauman, "Modernity and the Holocaust," 196.

authority figures that ask them to perform acts that go against their personal morality. The experiment required three people to be carried out: the learner, the teacher and the




experimenter.[55] The experimenter acted as the authority figure in charge, the teacher was the subject being tested, and the learner was an actor who faked being another subject. The learner was separated from the experimenter and the teacher by a screen. The experimenter made the teacher deliver "shocks" to the learner when they gave incorrect answers to memorization questions. In reality, no shocks were delivered, and the learner was only faking pain in responses to the shocks, but the teacher did not know that and believed the shocks and pain to be real. The experimenter encouraged the teacher to keep increasing the voltage of the shocks to be stronger the more questions that the learner got wrong, even though the painful screams grew more intense. The study found that, at a high frequency, moral people can be driven to commit immoral acts, which they know are immoral, if they believe that an expert authority figure determined that their actions are necessary and need to occur.[56]

German people, like the teacher in the Milgram experiment, were able to commit horrible immoral acts, such as creating anti-Jewish propaganda in the case of Brunhilde Pomsel, and avoid feeling responsible for their actions because an authority figure directed them to perform that action. Pomsel contributed to the definition step in the Hilberg process of destruction, as her stenography work helped to define Jewish people as existing in opposition to Nazi ideals. Yet, because leaders like Joseph Goebbels told her to do that work,

[55] Saul McLeod, "Stanley Milgram Shock Experiment."
[56] Bauman, "Modernity and the Holocaust," 198.

and she was only responsible for doing her work correctly since otherwise she'd be fired, she did not think whether or not she should have done the work in the first place. Many Germans contributed to the first step in the process of destruction through their bureaucratic work like Pomsel, which allowed for the government and military to help carry out the later, harsher steps. Workers in factories, teachers in schools, scientists in laboratories and more were all working under the total authority of the Nazi regime, who they blamed for the outcomes of genocide rather than believing themselves to be responsible. Had individuals been able to have the face-to-face encounter with the Other, like Levinas describes, feelings of ethical responsibility may have been harder to ignore. Yet, the ideology of the Nazi regime wrongly chose to totalize, rather than accept the infinity of the Other, leading to segregation and eventually genocide.

Having shown that the Nazis used the "big-three" analytic philosophies yet rejected the phenomenological approach to ethics promoted by Levinas, and committed such horrific moral violations, there is reason to believe that Levinas' phenomenology of ethics may do a better job at promoting morality. Normatively, it is easy to argue that moral philosophies ought not promote moral violations like the ones committed by the Nazi regime, since doing so undermine the common goal of these philosophies in trying to understand and promote morality in the world. In encountering the face of the Other, Nazis were able to realize their ethical responsibility towards the Jewish people they despised. Yet rather than accepting the infinity of the Other, they chose to totalize them and wrongly subvert their responsibility by trying to prevent these face-to-face encounters in the first place, which greatly contributed to the moral violations of the Holocaust. Accepting the infinite unknowability of the Other in phenomenology, rather than ignoring it and trying to totalize the Other to fit the Same's worldview as the Nazis had done, can inspire more ethical actions to take place. By accepting the Other's infinity, people will then respect others around them. This respect will result from

the face-to-face encounter, which will require them to constantly recognize the humanity and ethical obligation they hold towards the Other.

In another life where Nazis had adopted the tenets of phenomenology, they likely would have been able to renew and rehabilitate Germany's shattered social virtues and values. This is because these virtues and values would have been able to be deciphered upon the face-to-face encounter with the Other. The Other teaches the Same what is virtuous simultaneously as they make ethical demands upon them. These ethical demands show the Same which actions are in accordance with the demands, which end up being designated as virtuous and valuable, versus those actions that go against the ethical demands, which are thus deemed unvirtuous. The Other remains in its role as a teacher, educating the Same about themselves and what the Same ethically owes them. Nazi society would have been able to rebuild their shared virtues and values when the individuals who inhabit the society come to experience shared face-to-face ethical demands amongst each other. Yet, as we know from history, this is not what occurred. We are left with the dark legacy full of pain, despair, genocide, and horrific moral violations left behind by the Third Reich. Let this be a lesson to future generations, that phenomenology and people's moral experiences ought to be taken into serious consideration. If they are tossed aside, we risk repeating the same moral mistakes made by the Nazi regime in their adoption of Kantian ethics, utilitarianism, and virtue ethics.

# Chapter Seven
## Now What? Conclusions and Takeaways

"We must recognize that ethics requires us to risk ourselves precisely at moments of unknowingness, when what forms us diverges from what lies before us, when our willingness to become undone in relation to others constitutes our chance at becoming human."[1]

*-Judith Butler*

To consolidate the arguments of this text, it is crucial to understand that the moral violations committed by Nazi Germany did not occur because the nation was on a "special path" unlike any other nation. The path that the Nazis followed could have taken place in other nations and can take place again in the future, under the right conditions. The problems that Germany faced that contributed to the growth of National Socialism are commonly shared rather than unique to Germany. These problems: economic hyperinflation, job losses, political instability from a new regime, national feelings of shame and resentment from the aftermath of World War I created conditions for National Socialism to thrive. The same issues can occur easily in other nations; economies can be uncontrollable and political instability and humiliation can occur easily from national failures. Arguing that Germany was on a special path also assumes that other nations were inherently on the "right" path where industrialization and democracy, and thus the promotion of morality, go hand in hand.[2] In fact, Germany did elect Hitler through democratic means, showing that even Germany held aspects of democracy, until they were internally destroyed by Hitler's regime. The moral violations committed by the decidedly anti-democratic Nazi regime were not predestined for Germany alone because of their development away from democracy. In truth, other nations,

[1] Judith Butler, "Giving an Account of Oneself," 136.
[2] Manuela Achilles, "Germany's Special Path," (Lecture for HIEU-3390 Nazi Germany, University of Virginia, Charlottesville, VA, August 28, 2023).

despite their industrialized and democratic status, are capable of following similar trends of economic and political defeat that enable conservative movements like Nazism to thrive and spiral into the violation of human morality.

It is also crucial to point out that along with the Nazis not being unique in their development, they also were not devoid of morality entirely. Chapters Three, Four, and Five demonstrated the extent to which Nazis acted in accordance with pre-established and celebrated moral philosophies. In the case of Kant, Nazis acted out of notions of duty to Hitler and God when acting in antisemitic nature. Killing thousands of people is what Nazis genuinely believed was required of them to follow the categorical imperative. Of course, Kant's morality was perverted in many ways, especially by Adolf Eichmann. But tenets of Kantian philosophy remain adequately adopted, such as the use of reason by Nazis to produce what they believed to be the good will. It is perhaps easiest to see how Nazis adopted utilitarian arguments more clearly than other philosophies, precisely because of how inhumane the tenets of utilitarianism can already be. Hedonistic calculus will forever be plagued by the potential to harm minorities, potential for unfair distribution of pleasures and pains, and a lack of personal integrity. Additionally, the Nazis clearly outcasted minorities into concentration camps, subjecting them to pain and suffering that was not distributed amongst their own "Aryan" population. And most clearly, Nazis often went against personal moral values, such as doing no harm to others, in the name of creating an optimal outcome devoid of subhuman Jews. For virtue ethicists, the Nazis' adoption of virtue ethics may be hard to see since they so clearly committed non-virtuous actions. But it is crucial to see how a lack of virtuous foundations from the pure destruction of WWI led to the Nazis wrongly trying to revive broken value systems. Without the knowledge of virtue from the past, Nazis tried to bring back old virtues to combat the experimentation with new virtues seen in the Weimar republic. Yet, bringing back these shattered virtues to their former glory was an

impossible task, leading to extremism in comparison to the original intensity of historical pre-World War I German values of militarism, nationalism, scientific racism, nihilism, and antisemitism. Social programs, such as the Hitler Youth, also led to the development of virtues in German society unlike anything seen in the Bismarck-era; Nazi values were thoroughly drilled into the core of educational systems.

The adoption of certain aspects of these big three analytic moral philosophies were major factors that supported the horrific moral violations that we saw during the Holocaust. Nazis believed themselves to be acting morally insofar as they adopted tenets of these long-established theories. This is precisely what is so scary about the Nazi example. They were not monsters of immoral creation, nor were they aliens foreign to the concept of morality. Instead, they understood and in fact followed moral arguments to create a substantial amount of harm in their society. They were human beings, just like the rest of us. This is why we must be critical of moral philosophies and their supposed claim to give us the universal truth about morality. In truth, if these philosophies are utilized without a critical eye, accepting them without thinking through what adoption of philosophical tenets would entail, people risk creating a similar situation to Nazi Germany. Of course, I am not stating that Nazi Germany could ever be recreated exactly as it was, too much in the world has changed over time for this exact situation to take place again. But it is very much possible for another society to follow the path of Nazi Germany in terms of morality; societies may unknowingly adopt moral arguments in the future that allow them to justify actions that perpetuate rather than prevent moral violations.

Since we have learned how each of the main three analytic philosophies have played a role in perpetuating moral violations, it is thus important to consider why phenomenology deserves to be considered as an alternative. For a long time in academic circles around the topic of ethics, phenomenology has long been cast aside as an inferior methodological

approach to ethics. Considering experience, the face to face encounters we have with others, cultures, and context rather than solely logical analysis-focused argumentation is key to phenomenological inquiry. Again, this does not mean that phenomenology is devoid of argumentation as analytic philosophers often claim, as there are plenty of examples of arguments being progressed in phenomenological texts.[3] The rejection of phenomenology, alongside the adoption of tenets of the big three analytic philosophies to perpetuate moral violations, by the Nazis point us toward the conclusion that phenomenology finally deserves a seat at the table in academia.

Nazis of course showed this rejection of Levinasian phenomenological ethics as they battled at each moment to prevent the face-to-face encounter between the Other and the Same from occurring. Physical and mental separation between the two groups, the accepted "Aryans" and the outcasted Others, were key to preventing feelings of ethical responsibility. Accepting the infinity of the Other would have crushed the ideals of Hitler's *Volksgemeinschaft*, which was focused on denying responsibility towards any Other who did not fit in their Nazi worldview. I do not mean to suggest that phenomenology can fully take over the table at this given moment, since we have seen the good that is still able to be produced by the big three analytic traditions with their uses in anti-Nazi resistance movements. However, allowing phenomenology to be taken into serious consideration within academia as a viable ethical alternative to the big three analytic philosophies will help to prevent moral violations in the world around us. Accepting the infinite unknowability of the Other would have led the Nazis to make decisions that accepted their responsibility towards their victims as beings who placed unwavering ethical demands upon them. Societal integration of ethical beings, rather than segregation, is key.

[3] Moti Mizrahi and Mike Dickinson, "The Analytic-Continental Divide in Philosophical Practice: An Empirical Study," 1.

We now know that phenomenology deserves a seat at the table in discussions of ethics in society, a seat it has long been denied in place of Kantian ethics, utilitarianism, and virtue ethics, for the potential good it can bring about. But what will it take for phenomenology to finally receive this seat that it currently lacks? The answer is a solid foundation in the structures of society.

In modern society, the tenets of established analytic ethical philosophies have found their way into the very same structures we depend on in everyday life. For the sake of brevity, I will be using structures seen within the United States of America to demonstrate my argument, especially because they are what I am most familiar with. However, this does not mean that American structures are the only place where the big three ethical philosophies are present. In fact, these philosophies were each developed outside of American society and culture. Kantian ethics were developed in Enlightenment-era Germany, Aristotelian virtue ethics are a product of Ancient Greece, and Bentham's were developed in 18th century England. Each of these philosophies undoubtedly found their way into their homeland's societal structures, as well as, spreading to outside nation's structures like they did in the United States.

The American legal system is overrun with philosophical arguments rooted in Kantian ethics that support the existence of some law. Legal scholar Donald L. Beschle analyzes the extent to which Kantian principles are found within the American legal system, since, "whether a government practice collides with a broad principle will often be a question of degree, rather than one that calls for a clear yes or no answer."[4] Beschle finds that the principle that the government not treat others merely as a means, a large aspect of Kant's categorical imperative, comes up quite frequently in law, specifically in cases of

[4] Donald L. Beschle, "Kant's Categorical Imperative: An Unspoken Factor in Constitutional Rights Balancing," 968.

constitutional rights analysis.[5] One example, treating children born out of wedlock differently within the law is clearly prohibited, since doing so would be a means to an end for a world without premarital sexual relationships.[6]

While Beschle argues that Kantian morality is found within the legal system in other additional ways, such as within constitutional balancing, he also discusses that utilitarianism is present within the legal system as well. Both principles exist, to some partial extent, in the laws we abide by.[7] In some ways, the American legal system is constantly in some sort of balancing act between utilitarianism and Kant's thought.[8] Beschle notes that even strict scrutiny tests, which are forms of judicial review against government actions that may infringe people's rights, can allow, "for the possibility that a fundamental right might be overridden if necessary to achieve a compelling social interest."[9] In essence, individual rights are not always supreme over the interests of the community, but the good of the community is not always a valid reason to trample individual rights.

This sort of balancing is also seen in the American institutions of healthcare and medicine. The healthcare system has the unique job of trying to balance various different moral philosophies and methods of bioethics.[10] Regarding utilitarianism, the most prominent example of this is seen with the U.S. Centers for Disease Control (CDC). The CDC's goal is promoting social utility through the protection of the general American public.[11] Hospitals in general also have to account for resource allocation procedures often when shortages occur, where utilitarian calculus is done to determine who will receive their needed resource in order of priority.[12] In regards to Kantian ethics, arguments for ensuring how to treat people as ends

[5] Beschle, "Kant's Categorical Imperative," 968-969.
[6] Beschle, "Kant's Categorical Imperative," 972.
[7] Beschle, "Kant's Categorical Imperative," 955, 963.
[8] Beschle, "Kant's Categorical Imperative," 963.
[9] Beschle, "Kant's Categorical Imperative," 963.
[10] Stephen C. Taylor, "Health Care Ethics."
[11] Taylor, "Health Care Ethics."
[12] Jeffrey Yuk-Chiu Yip, "Healthcare Resource Allocation in the COVID-19 Pandemic: Ethical

in themselves, rather than mere means to an end, are abundant.[13] Respecting the autonomy and human dignity of others is crucial for this categorical imperative, which health care officials are often tasked with doing when making decisions for their patients. In these decisions, officials must be sure to gain the consent of patients before performing medical treatments in non-emergency situations.[14] Duty in Kantian ethics is also apparent within the structure of the healthcare system, as each medical professional is tasked with the duty to uphold the Hippocratic Oath that they swear to follow. The oath acts as the "supreme deontological code" by which the healthcare system abides.[15] Notably, streams of virtue ethics also flow throughout the structures of the healthcare system. Primarily, health care officials are expected to cultivate virtues within their own personal character.[16] From their deep training of medical ethics, throughout their time in education to be a healthcare professional, healthcare professionals are expected to know how to go about making moral decisions in tough medical situations.[17] Having learned from the moral failures and virtues of the past, medical professionals aim to follow Aristotelian virtue theory as they live a life striving for *eudaimonia* for both themselves and their patients.

Virtue ethics is also heavily developed within religious institutions in America. Nearly all religious organizations, regardless of faith or denomination, espouse teachings of the development of moral character along the lines of virtue ethics philosophy.[18] Of course, religion plays a massive role in the lives of many Americans, with around 47% of U.S. adults belonging to either a church, synagogue, or mosque.[19] With this in mind, there is little doubt

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Considerations from the Perspective of Distributive Justice within Public Health," 2.
[13] Taylor, "Health Care Ethics."
[14] Chase M. Donaldson, "Using Kantian Ethics in Medical Ethics Education," 843.
[15] R. Coke-Cruz, "Hippocratic Philosophy," 611.
[16] Taylor, "Health Care Ethics."
[17] Taylor, "Health Care Ethics."
[18] Sustainable Development Goals Academy, "Virtue Ethics as a Multi-Religious Consensus," 00:00 to 01:33, https://sdgacademylibrary.mediaspace.kaltura.com/media/Virtue+Ethics+as+a+Multi-Religious+Consensus/1_sw62u9y1/123650921
[19] Gallup, "U.S. Church Membership Falls Below Majority for First Time," https://news.gallup.com/poll/341963/church-membership-falls-below-majority-first-time.aspx

that regardless of which faith one subscribes to, if one subscribes to any faith at all, they are likely to encounter Aristotelian ideas of development of moral character in some way. Of course, each religion is unique in which virtues they choose to emphasize, but they commonly share consensus that the individual should work towards cultivating themselves to be what their God or Gods wants them to be. Religious structures like these, which promote virtue ethics, are long standing in society; the roots of religious institutions exist deeply within the history of human beings. Therefore, there is little doubt that virtue ethics is not already ingrained in how many societies operate in their moral decision-making today.

Phenomenology, unlike the "big three" analytic philosophies, does not share the same structural support. There is no long-standing institution, like the legal system, healthcare system, or religious structures, that exists to support the phenomenological tradition. Without such a system present, people are deprived of the ability to engage with the ethical theories of phenomenology in the same way they have been able to with the other big three philosophies. This lack of foundation is an extreme hindrance to the success of phenomenological ethics today; individuals are not taught how to think of ethics throughout the context of experience and face-to-face encounters with others.

It would be extremely difficult to try to change a pre-existing societal structure away from its pre-established moral philosophies. As we have seen time and time again, structures are resistant to change of their core tenets. Making public policy to change government structures often requires making changes piece by piece, since legislation that completely overhauls a government structure is frequently met with backlash. Recently, this is perhaps best demonstrated by Barack Obama's Affordable Care Act, which made sweeping changes in the structure of healthcare operations, especially in regard to insurance, in the United States. The Affordable Care Act, and its subsequent political backlash, demonstrate how people are often resistant to change at their very core, and are better equipped to handle

gradual changes over time. Trying to overhaul the ethics at the very core of any pre-existing structure in society and add in phenomenological arguments will have to follow this gradual timeline. However, with gradual transformation, you also risk having more time for pre-existing ethics to go awry again like they did in Nazi Germany. It may take centuries for a structure to fully adopt phenomenology, in which millions of moral violations may occur simultaneously.

One suggestion to avoid this problem of gradual change is instead to create new structures that promote phenomenology. Creating new societal organizations that congregate and can disseminate phenomenology within their operations may be key to having phenomenology achieve that seat at the table. There are many ways that these organizations could take shape, but I imagine them starting at universities where young students are able to congregate and discuss phenomenology and then go on to implement the philosophies of scholars like Levinas in their everyday lives. Universities are a great starting point for organizations to begin and develop alongside the students who inhabit them.

When phenomenology finally establishes itself in some form of societal structure, finally creating a solid foundation for itself, societies may then be able to better combat the moral violations seen within Nazi Germany. People, having learned from the structure that they participate in, will finally be able to accept their responsibility towards the infinitely unknowable Other unlike the Nazis.

Until this occurs, we can only hope for the world around us to remain committed to upholding morality; *for the loss of morality spells doom for us all*.

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